

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

Preparation of the 11th Consultation

Combating discrimination in education

Eleventh consultation of Member States on the application of the Convention and the Recommendation against Discrimination in Education (1960) (2024-2025)

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

1. Introduction

The Convention against Discrimination in Education (“the Convention”) and the Recommendation against Discrimination in Education (“the Recommendation”), adopted by UNESCO’s General Conference in 1960, are aligned with UNESCO’s constitutional mandate to “advance the ideal of equality of educational opportunities without regard to race, sex or any distinctions, economic or social”. The Convention is the first legally binding international instrument focused on the **right to education** and the only one exclusively dedicated to it.

The right to education is one of the key principles underpinning the Education 2030 agenda and Sustainable Development Goal 4 (SDG4) adopted by the international community in 2015. SDG 4 seeks to ensure the full enjoyment of the right to education as fundamental to achieving sustainable development. Its scope captures the multidimensional nature of the right to education.

Representing a powerful tool to advance SDG 4 by ensuring effective articulation between normative and operational work, the Convention has been recognized as a cornerstone of Education 2030 agenda.

The present Guidelines are intended to assist Member States in the preparation of country reports on the implementation of the Convention and the Recommendation in the context of the 11th consultation.

2. Scope of the Consultation

Considering the Education 2030 agenda, the monitoring of the Convention and the Recommendation is of crucial importance to ensure an education that is truly inclusive for all and to counter persistent inequalities in access, participation and learning outcomes at all levels, particularly for the most vulnerable groups. This is particularly true under the current context in which countries are making efforts to recover from the learning disruption caused by the COVID-19 pandemic. Concrete measures taken by countries in accordance with their legal obligations under these instruments contribute to implementing the Education 2030 agenda.

As the scope and content of the legal obligations under the right to education are aligned with the 10 targets of SDG 4, efforts are being made to ensure that the components of the targets are included in the guidelines and that these guidelines serve as a valuable contribution to monitoring progress towards SDG 4 targets.

Beyond SDG 4, the Convention is also closely aligned with the normative content on the right to education of other international human rights instruments such as the International Covenant on Economic, Social and Cultural Rights (1966), Convention on the Elimination of All Forms of

Discrimination against Women (1979), the Convention on the Rights of the Child (1989) and the Convention on the Rights of Persons with Disabilities (2006).

In addition, this Consultation is an opportunity to inform the ongoing **UNESCO Initiative on the Evolving Right to Education within a lifelong learning perspective**¹ (launched in December 2021). The Initiative investigates how the right to education could be reinforced placing it within a lifelong learning perspective and in light of the new demands being placed on education. This Initiative builds on the **Report from the International Commission on the Futures of Education**², which suggests to broaden our understanding of the right to education to clearly apply it to all ages and across all times and spaces. The initiative is also in-line with the **Vision Statement of the United Nations Secretary General on Transforming Education**³, and the **Report on the 2022 Transforming Education Summit**⁴ which call for the transformation of education systems to 'include everyone, regardless of circumstance, context or background'. The Initiative on the Evolving Right to Education aims to open a collaborative and participatory discussion about the international framework to ensure the effective enforcement of the right to education and learning throughout life for all. Finally, the Initiative builds on recent inter-governmental dialogues, including the Marrakech Framework for Action for Adult Learning and Education⁵ and the Tashkent Declaration on Early Childhood Care and Education.⁶

It is also important to note that previous consultations on the Convention and Recommendation revealed that countries now understand the right to education in an extended manner. The 11th consultation builds on the findings of the previous national reports to include various areas that have direct repercussions on the right to education such as, for instance, digital learning, climate considerations, lifelong learning entitlement, and the role of non-state actors in education.

3. Reporting obligations

There are differences in the legal nature of the obligations under the Convention, as distinguished from those under the Recommendation. The Convention has binding force and the States Parties are under the obligation to incorporate its provisions into their domestic frameworks. The Recommendation, non-binding in nature, has political and moral force. Its adoption sought to take into account the difficulties that certain States might experience in ratifying the Convention, in particular with respect to their federal structure.

Bearing in mind the differences in legal scope inherent to the nature of these two categories of instruments, the content of the Recommendation is identical to that of the Convention. Member States are expected to give effect to it in national legislation and education policies.

The reporting obligation under the provisions of Article VII of the Convention and of the Recommendation is the same. Article VIII of UNESCO's Constitution states that "*Each Member State shall submit to the Organization, at such times and in such manner as shall be determined by the General Conference, reports on the laws, regulations and statistics relating to its educational, scientific and cultural institutions and activities, and on the action taken upon the recommendations and conventions referred to in Article IV, paragraph 4*". Therefore, even if a country is not a State Party to the Convention, it needs to submit a report on the implementation of the Recommendation, which means that **all UNESCO Member States are expected to submit a national report** on the implementation of these instruments in the context of monitoring consultations.

¹ <https://www.unesco.org/en/right-education/evolving>

² <https://unesdoc.unesco.org/ark:/48223/pf0000379707>

³ https://www.un.org/sites/un2.un.org/files/2022/09/sg_vision_statement_on_transforming_education.pdf

⁴ https://www.un.org/sites/un2.un.org/files/report_on_the_2022_transforming_education_summit.pdf

⁵ [Marrakech Framework for Action | Institute for Lifelong Learning \(unesco.org\)](https://www.unesco.org/en/marrakech-framework-for-action)

⁶ [Tashkent-declaration-ecce-2022.pdf \(unesco.org\)](https://www.unesco.org/en/tashkent-declaration-ecce-2022)

4. Participation in consultations

The reporting period for the 11th consultation on the implementation of the Convention and the Recommendation covers four years (2021-2024).

The Futures of Education Report calls for a new social contract for education, which requires to understand education as a common good and a shared societal endeavour. To ensure this, extensive consultations involving a broad range of stakeholders is needed. The reporting process therefore needs to be **participatory**. This includes ensuring cooperation between ministries of education and other ministries dealing with aspects of the right to education as well as consulting social partners and **civil society organizations** and other relevant bodies.

The preparation of national reports provides a **good opportunity** for Member States to assess the implementation of the right to education in their country, identify specific challenges, build constructive dialogue with other actors involved in this field and share good practices.

In the preparation of reports, Member States are encouraged to provide **substantive and relevant information in a concise manner**. In addition to a description of the constitutional, legislative, administrative, and policy framework established for the implementation of the provisions guaranteed by the instruments, the information supplied by Member States should demonstrate how legal norms and practices comply with the Convention and the Recommendation.

Relevant information supplied for other reporting instances may be reproduced or referred to with precise indication as to its retrieval. Similarly, hyperlinks to any useful documents or relevant legal and policy texts are most welcome and texts can also be added in the annex.

Country reports submitted for previous consultations can be found on the **Observatory on the right to education**⁷ in the monitoring section of the country profile. The information provided in the reports are valuable both for the Observatory on the right to education as well as for **HerAtlas**⁸, the online monitoring tool for girls' and women's right to education. Information and data regarding countries' education systems are also available through the UNESCO Institute for Statistics database⁹. Beyond monitoring purposes, the consultation findings and reports inform broader work - serving for knowledge generation, advocacy, and technical cooperation.

5. Modalities and structure

The Guidelines are structured around three chapters:

- The **first chapter** covers general information on adherence to the Convention.
- The **second chapter** aims to gather information on the implementation of the Convention and Recommendation in the context of Sustainable Development Goal 4. As the most extensive part of the Guidelines, this chapter covers: inclusion and non-discrimination in education (section 1), all levels and forms of education (section 2), quality education provision and learning environment (section 3) and finally, strengthening governance systems (section 4).
- The **third chapter** seeks to obtain information on the methods used to draw the attention of the various authorities in the country to the instruments.

With a view to simplify the Guidelines while providing necessary substantive information to assist Member States in the preparation of responses, through a participatory process, **two types of guidance** are provided:

⁷ <http://www.unesco.org/education/edurights/index.php?action=home&lng=en>

⁸ <https://en.unesco.org/education/girls-women-rights>

⁹ [UIS Statistics \(unesco.org\)](https://uis.unesco.org)

- (1) Open-ended and closed-ended questions to be directly filled in by Member States. Please note that multiple answers may be provided where relevant.
- (2) Additional information aimed at guiding Members States to structure and detail their responses to the open-ended questions (including remarks on how to respond efficiently to the questions raised). These elements are presented in italics.

GENERAL INFORMATION:

Country name: Republic of Korea

Organization or entity responsible for the preparation of the report: Ministry of Education (MOE)

Name of contact person:

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I. Ratification and applicability of the Convention against Discrimination in Education¹⁰

- Is your country a State Party to the Convention?

☐ Yes

☒ No: [Does your country plan to ratify this instrument?](#)

☒ Yes: [Please indicate the stage of ratification process reached by your country and whether assistance is needed:](#)

☐ There is interest but no concrete action has been taken

☐ The ratification process has been initiated

☐ The ratification process is close to completion

- Please briefly explain the steps that have been taken and timeline when relevant, any difficulties encountered (legal, institutional, political or practical) in completing the ratification process. And how UNESCO can assist:

■ The Republic of Korea is already making efforts to prevent discrimination in education based on Article 31 of its Constitution and other relevant laws, and as a UNESCO Member State, seeks to follow in good faith the Recommendation against Discrimination in Education (1960), and other relevant instruments adopted by UNESCO.

☐ No, not considering ratification. [Please explain why:](#)

- Is the Convention directly applicable in your country's domestic law?

☐ Yes ☒ No

- Have courts, tribunals and/or administrative authorities adjudicated on issues or violations regarding the right to education?¹¹

☐ No

☒ Yes: Have the provisions of the Convention been invoked?

☐ Yes ☒ No

- Please cite the case law and jurisprudence.

Information could also be given about the judicial, administrative and other competent authorities having jurisdiction with respect to the right to education.

■ In 2023, there was a ruling related to the interference by parents/guardians in educational activities conducted by teachers. A second-grade student's name was written on the blackboard as punishment for playing with a water bottle during class. He was also made to spend approximately 10 minutes cleaning up after class. The parents claimed this was child abuse and demanded a change of the homeroom teacher. The first trial judged this as an inappropriate interference by parents in the educational activities undertaken by teachers, while the second trial viewed it as a violation of the child's dignity. However, the Supreme Court ruled that it was a legitimate educational activity conducted by the teacher. This ruling marked the first time the Supreme Court clarified that a teacher's educational judgment should not be infringed upon or unduly interfered with by parents or guardians.
(Law Times, September 14, 2023, <https://www.lawtimes.co.kr/news/191293> (in Korean))

II. Information on the implementation of the Convention or Recommendation in the context of Sustainable Development Goal 4 (SDG4)

1. Towards an inclusive non-discriminatory education system

For reference: This section relates to the main purpose of the Convention/Recommendation that is to underscore the state obligation to proscribe any form of discrimination in education while promoting equality of educational opportunity as laid out in Articles/Paragraphs 1(1), 2 and 3 of the Convention/Recommendation.

*It further corresponds to the overall aspiration of SDG4 which aims to “**ensure inclusive and equitable quality education and promote lifelong learning opportunities for all**” by 2030. While it covers all the SDG4 targets, it also specifically covers SDG target 4.5.¹²*

- Please indicate whether the rights and principles laid out in the Convention/Recommendation informed the elaboration of the education legal and/or policy framework:

¹¹ Judicial mechanisms play an important role in enforcing the right to education by ensuring legal accountability and therefore contributing to the practical realization of the right to education.

¹² Which calls on states to “eliminate gender disparities in education and ensure equal access to all levels of education and vocational training for the vulnerable, including persons with disabilities, indigenous peoples and children in vulnerable situations”.

☒ Yes ☐ No

- If yes, please provide reference:

- The legal basis and policy framework to support the right to education and prevent discrimination in education derive from foundational legislation such as <Constitution> and <Framework Act on Education>. Article 31-1 of <Constitution> stipulates that "All citizens shall have an equal right to receive an education corresponding to their abilities," embodying the principle that all citizens have the right to education without discrimination. Article 4-1 of <Framework Act on Education> further provides the foundation for equal educational opportunities for all citizens.
- As part of the <Presidential National Agenda>, the government has articulated policies to strengthen national responsibility for education and to realize an inclusive and non-discriminatory education system. Various educational support programs for North Korean defector students, multicultural students, students in crisis, and students with disabilities have been implemented to establish an "education hope ladder" to bridge educational gaps (National Agenda 84-3). In response to learning losses exacerbated by the COVID-19 pandemic, the Ministry of Education introduced measures to enhance the competitiveness of public education in June 2023. These include designating the 3rd grade of elementary school and the 1st grade of middle school as key focus years to support basic academic abilities, thus addressing the academic disparities that tend to widen during these critical periods (National Agenda 82-3, 82-5). Additionally, efforts are being made to bridge the digital education divide and to create an educational foundation for improving digital literacy among vulnerable groups, such as low-income households and adults (National Agenda 81-5). There is also a focus on strengthening the support system for higher education to ensure inclusive, non-discriminatory, and tailored education for students with disabilities (National Agenda 90-4).

1.1 Non-discrimination and equality in education

- Please indicate measures adopted to both prevent and eliminate discrimination in education within the meaning of the Convention/Recommendation¹³, and ensure equal access to all levels and types of education (please tick all that apply):

For reference: This notably is covered under SDG target 4.1 and partly target 4.b¹⁴

☒ Legal texts¹⁵ prohibit discrimination and guarantee equal access to education:

- ☒ In pre-primary education (including early learning and care)
- ☒ In primary education
- ☒ In secondary education
- ☒ In technical and vocational education and training
- ☒ In higher education
- ☒ In adult education and alternative learning

¹³ See: Article/Paragraph 1(1).

¹⁴ Which calls on states to "substantially expand globally the number of scholarships available [...] for enrolment in higher education, including vocational training and information and communications technology, technical, engineering and scientific programmes".

¹⁵ Constitution, laws, decrees, regulations, circulars, etc.

- Please indicate the relevant legal provisions:

- <Constitution>
 - Article 31-1: All citizens shall have an equal right to receive an education corresponding to their abilities.
- <Framework Act on Education>
 - Article 3 (Right to Learn): Every citizen shall have a right to learn through life and to receive an education according to his or her abilities and aptitudes.
 - Article 4 (Equal Opportunities in Education): No citizen shall be treated with discrimination in education for reasons of gender, religion, faith, race, social standing, economic status, or physical condition, etc.
 - Article 17-2 (Enhancement of Gender Equality Awareness): The State and local governments shall formulate and implement policies, including the following matters, to promote gender equality awareness more proactively, to protect the dignity of the gender of students, and to cultivate healthy sentiments toward gender.
- <National Human Rights Commission of Korea Act>
 - Article 2-4: Defines a 'discriminatory act' as including any act of favorably treating, excluding, discriminating against or unfavorably treating a particular person regarding the education, training, and use of educational facilities or vocational training institutions on grounds such as gender, religion, disability, age, social status, place of birth, physical condition etc..
- <Multicultural Families Support Act>
 - Article 10 (Care and Education for Children and Youth): Neither the State nor local government shall discriminate against children and youth of any multicultural family in providing care and education services for children and youth.
- <Framework Act on Treatment of Foreigners Residing in the Republic of Korea>
 - Article 10 (Safeguarding Human Rights of Foreigners, etc. in Korea): The State and local governments shall endeavor to take necessary measures, such as the conduct of education and publicity activities, to prevent unreasonable discrimination against foreigners in Korea and their children and to safeguard their human rights.
- <Framework Act on Youth>
 - Article 5 (Rights and Responsibilities of Youth): No youth shall be subject to any form of discrimination on the basis of his or her race, religion, gender, age, academic background, physical conditions, etc.
- <Act on Special Education for Persons with Disabilities>
 - Article 4 (Prohibition of Discrimination): The head of school at each level or the head of university shall not discriminate against him/her in the educational opportunity, such as the refusal of an application for admission therein or of the admission of a passer in an admission screening test, for reasons of his/her disability.
- <North Korean Defectors Protection and Settlement Support Act and Enforcement Decree>

- <Act on Development of E-learning Industry and Promotion of Utilization of E-Learning> Article 17-2 (Support for Educational Institutions with Regard to E-Learning)
- <Framework Act on Intelligent Informatization>
 - Article 3-4 The State and local governments shall endeavor to provide equal opportunities for all members of the society in utilizing intelligent information technology or in using intelligent information services.
 - Article 4-4 The State and local governments shall endeavor to solve inequality and actively cope with changes in work environments, which could be caused or worsened by intelligent informatization.
 - Article 45 (Establishment of Policy Measures for Closing Digital Divide) National agencies and local governments shall establish policy measures necessary to ensure that all citizens can practically enjoy the basic right to efficiently access and beneficially utilize the intelligent information services without any discrimination.
 - Article 46 (Guaranteeing Access to and Use of Information by Persons with Disabilities and Senior Citizens)
- <Elementary and Secondary Education Act>
 - Article 60-4 (Assistance with Educational Expenses), Article 28-2 (Support for Multicultural Students, etc.)
- <Enforcement Decree of the Higher Education Act>
 - Article 29 (Admission and Transfer) provides for special admissions for North Korean defectors, foreigners, overseas Koreans, and naturalized citizens, among others, under quota exemptions.
 - Article 42-6 (Operation of Social Integration Admission Process) designates those in need of differentiated educational support, including North Korean defectors, foreigners, overseas Koreans, and naturalized citizens, as eligible for the social integration admissions process.
- <Lifelong Education Act>
 - Article 4 (Ideals of Lifelong Education): All citizens shall be guaranteed equal opportunities for lifelong education.
 - Article 5 (Duties of the State and Local Governments): The State and local governments shall establish and promote the lifelong education promotion policy to provide all people with opportunities to participate in lifelong education.
- <Framework Act on the Promotion of Digital-Based Distance Education>
 - Article 3 (Basic Principles)
- <Act on Special Education for Persons with Disabilities>
 - Article 4 (Prohibition of Discrimination): (1) The head of school at each level or the head of university shall not discriminate against him/her in the educational opportunity, such as the refusal of an application for admission therein or of the admission of a passer in an admission screening test, for reasons of his/her disability. (2) The State, local government, the head of school at each level or the head of university shall not discriminate against the persons eligible for special education and their care giver in any of the following subparagraphs except for cases where it is evident for the performance of education in consideration of the characteristics of the disabled: a. Discrimination in

provision of special education-related services under Article 28; b. Exclusion from attendance in class and participation in student-led activities and any other intramural and extracurricular activities; c. Exclusion from participation of care givers, such as participation in individualized education support team; d. Discrimination in admission screening test by requesting a separate interview or medical examination, except for cases where it is required to investigate and confirm the details of the convenience of taking an examination which is necessary due to a disability in the university admission screening test; e. Request a student without disabilities for a guarantor or a written oath in the process of admission or transfer to a school, and admission to a dorm; f. Discrimination in provision of guidance on student life, referred to in the Act on the Prohibition of Discrimination against Persons with Disabilities and Remedy against Infringement of Their Rights.

- Please list the prohibited grounds of discrimination in education as laid out in legal texts:

■ Gender, religion, belief, race, disability, age, educational background, social status, economic status, physical condition, or migration background.

■ Policies, programmes and initiatives aim to prohibit and prevent discrimination and ensure equal access to education

■ In pre-primary education (including early learning and care)

■ In primary education

■ In secondary education

■ In technical and vocational education and training

■ In higher education

■ In adult education and alternative learning

- Please provide details:

■ According to <Support Plan for Nurturing Talents among Students with Migration Backgrounds (2023-2027)>, announced by the Ministerial Meeting of Social Affairs in collaboration with the relevant government ministries, the Republic of Korea has established policies to prohibit discrimination and ensure equal access to education for students with migration backgrounds. Additionally, <4th Basic Plan for Multicultural Family Policies (2023-2027)> supports educational integration and learning capabilities of multicultural families throughout the learning life cycle and implements policies to prevent discrimination in education.

– <Support Plan for Nurturing Talents among Students with Migration Backgrounds (2023-2027)>

- The first key initiative is "Strengthening the Korean Language Education System for a Discrimination-Free Educational Environment." This includes the operation of regional Korean language preparatory courses, intensive Korean language camps utilizing regional universities, and the distribution of AI digital textbooks supporting multilingual translation functions starting from 2025.
- A major task of the plan is to cultivate highly skilled practical professionals through specialized vocational education. The plan aims to identify and

expand the number of vocational high schools specializing in education for students with a multicultural background, increasing the number from 10 in 2024 to 20 by 2027. In relation to this, the plan seeks to utilize vocational colleges to expand vocational education programs customized for multicultural students and promote related projects linking provincial education offices and universities.

- Career counselling and academic support are provided through mentoring programs for university students with a multicultural background.
- Career education, such as work experience programs and career concert, is being expanded and diversified for migrant background youth.
- The plan includes expanding infrastructure such as Korean language classes, support personnel, and after-school programs for multicultural schools with a high concentration of students with migrant backgrounds.
- <4th Basic Plan for Multicultural Family Policies (2023-2027)>
 - Support for early childhood care includes step-by-step parent education and services for children's language education and daily life guidance.
 - A home education program for those who have difficulty attending centre-based education provides Korean language and parental education for parents and basic learning guidance, reading, and homework assistance for children.
 - To enhance learning capabilities for multicultural children of school age, support is provided for basic learning before and after entering elementary school, increasing accessibility to services, strengthening cooperation between Korean language classes in schools and family centres, and providing translation services for school notices and family communications.
 - Tailored services for older adolescents include vocational training through institutions such as Korea Polytechnics and Naeil-Ilum Schools, as well as subsidy programs that promote youth employment opportunities.
 - Digital skills development for multicultural youth is supported through initiatives such as the National Tomorrow Learning Card and K-Digital Basic Competency Training Program (K-Digital Credit).
- A state scholarship system and special admissions programs for various groups including for rural students, children of disabled parents, and children from multicultural families aim at preventing discrimination and ensure equal access to higher education. Additionally, to protect the human rights of students and education personnel, and to prevent and address sexual harassment and sexual violence, all universities are required to establish human rights centres. The duties of these centres include counselling and investigating human rights violations, promoting education and awareness on human rights, and preventing and responding to sexual harassment and sexual violence (Article 19-3 of <Higher Education Act> and Article 9-3 of the Enforcement Decree).
- The Ministry of Education is developing and applying digital textbooks for digital education that are accessible to students with disabilities and has issued guidelines to ensure web accessibility. Additionally, the Ministry contributes to preventing educational discrimination through policies and programs in the following lifelong learning areas:
 - Academic Credit Bank System: Recognizes various forms of learning inside and outside schools, allowing learners to accumulate credits towards a degree, providing opportunities for educational recognition and degree acquisition.

- Self-Study Degree System: Enables learners to earn degrees by passing a national examination, offering recognition of educational attainment and degree acquisition opportunities for self-taught learners.
 - Lifelong Education System Support Project for Universities (LiFE): Supports universities in establishing and operating lifelong education systems that are adult-learner-friendly, allowing adult learners who have entered the workforce after high school to balance work and study, pursue degrees, and engage in continuous career development.
 - Adult Literacy Education Support Program: Provides support for adult literacy education programs and establishes a literacy-based primary and middle school accreditation system to offer educational opportunities to illiterate or low-educated adults.
 - Lifelong Education Voucher Support Program: Provides lifelong education vouchers of up to 350,000 KRW per person annually to adults aged 19 or older from low-income households, second-lowest income bracket groups, or educationally marginalized communities, ensuring that all citizens have the opportunity to participate in learning regardless of their circumstances.
- The Ministry of Unification, through < 4th Basic Plan for the Settlement Support of North Korean Defectors (2024-2026)>, and the Ministry of Education, through the annual Support Plan for North Korean Defector Students, work to prohibit discrimination against North Korean defector students and ensure equal access to education.

■ Combatting discrimination in terms of curriculum:

■ In pre-primary education (including early learning and care)

■ In primary education

■ In secondary education

- ☐ In technical and vocational education and training
- ☐ In higher education
- ☐ In adult education and alternative learning

- Please provide details:

The 2022 Revised the National Curriculum for Elementary and Secondary Schools aims to provide appropriate educational opportunities to learners with diverse characteristics without discrimination. Throughout all educational activities, the curriculum aims to guide students to avoid holding stereotypes or biases based on gender roles, educational background or occupation, disability, religion, previous residence, race, ethnicity, or language. The relevant provisions from the national framework of the revised curriculum are as follows:

The National Framework for the Elementary and Secondary Curriculum (Proclamation of the Ministry of Education No. 2022-33 [Annex 1])

II. Designing and Implementing the School Curriculum

2. Teaching and Learning

- C. Schools diversify learning activities and methods based on the characteristics of the subject matter and students' abilities, aptitudes, and careers and promote personalized lessons by forming various learning groups based on the school environment and students' characteristics.

3) Schools recognize and respect the diversity of students' personal and sociocultural contexts, such as their multicultural backgrounds, family compositions, and disability statuses. Schools also strive to avoid creating bias, stereotypes, or discrimination while reflecting this diversity in teaching

4. Equal Opportunities for All Students

A. Schools instruct students not to have biases and prejudices about gender roles, education levels and occupations, disabilities, religions, regions of residence, races, ethnicities, and languages throughout all of their educational activities.

B. Schools ensure that students are not unfairly discriminated against or segregated from educational opportunities and learning experiences due to their personal characteristics or social and cultural backgrounds.

C. Schools provide supports for adequate learning experiences for their entire student body, including but not limited to: underachievers, gifted students, students with disabilities, returnees from overseas, students from multicultural backgrounds, and so forth.

D. In the case of installing and managing classrooms for students with special needs, schools may adjust this curriculum or apply the special education curriculum textbooks and teaching and learning materials for inclusive education, by taking into account the degree and types of students' disabilities.

E. In the case of installing and managing classrooms for students with multicultural backgrounds, schools may adjust this curriculum or adopt a Korean as a Second Language (KSL) curriculum and teaching and learning materials based on the level of students' Korean proficiency. Schools may offer the Korean Language curriculum for approximately 10 hours per week according to school circumstances and the needs of parents, teachers, and students.

F. In the case of offering a religion course, schools should offer multiple courses in addition to the religious course to ensure students' right to choose. However, in the case of religion-affiliated schools-in which students willingly enrol-a single course may be offered with the consent of parents and students.

IV. Support for School Curriculum

2. Enhancement of Personalized Education

A. Support at the national level

3) Develop plans to support students with diverse characteristics, such as underachievers, slow learners, students from multicultural backgrounds, and so on

4) Provide reasonable accommodations for students with special needs by assisting with teaching and learning materials, assessment methods and tools, and so on.

B. Support at the level of local offices of education

3) Support personalized education that values students' diversity and prevent learning alienation and the widening of the educational gap.

a. Establish a support system for rural schools and small schools to reduce the educational gap across regions as well as between schools.

b. Support educational communities in working together to plan and implement personalized educational activities that meet the needs

and demands of individual students in order to ensure that no student is marginalized from their learning.

- c. Provide various opportunities for students to make up any incomplete courses, especially for those who were unable to take certain subjects in the common curriculum or high school common courses due to transfer between schools or returning from overseas. Endeavor to provide students with the opportunity to take courses in qualified public institutions in the local community.
- d. Support students from diverse backgrounds, including returnees from overseas and students from multicultural backgrounds, to ensure that their educational experiences and backgrounds do not impede their completion of the school curriculum
- e. Prepare and provide educational opportunities for gifted students, slow learners, and students with special needs.

- Beyond the Republic of Korea's national curriculum, further efforts are being made to prevent discrimination and ensure equal educational opportunities for all through the inclusion of appropriate guidelines in the Guidelines for the Compilation of Textbooks for Elementary and Secondary Schools.

Guidelines for the Compilation of Textbooks according to the 2022 Revised National Curriculum

II. Common Guidelines for Compilation

2. Maintaining Neutrality in Education

- Educational content should fulfil its purpose according to the original goals of education and should not be used as a means to spread political, partisan, or personal bias. Content must be handled impartially and educationally.
- Educational content should not promote or criticize specific countries, races, ethnicities, political parties, religions, individuals, institutions, or products. Moreover, it should avoid any bias related to gender roles, disabilities, or occupations.
- The content must not include any statements that defame socially disadvantaged groups or that encourage prejudice, and it should ensure that the dignity of individuals is maintained.

- According to the 2022 Revised National Curriculum, cross-curricular themes include character education, democratic citizenship education, human rights education, and multicultural education. Through these cross-curricular themes, students learn the value of non-discrimination.
- Legal and policy efforts focusing on multicultural children and youth in the curriculum can also be found in the following:
 - <Elementary and Secondary Education Act> Article 19-4 specifies that multicultural children and youth may be admitted or transferred to elementary schools with special classes for multicultural students, thus creating curricula for ethnic minorities.
 - Regions with high concentrations of multicultural children and youth are designated as Special Zones for Educational Internationalization, and <Special Act on the Designation, Operation, and Promotion of Special Zones for Educational Internationalization> has been enacted in this regard. According to Article 10 (Special Cases for the Operation of Elementary and Secondary Schools) of this Act, elementary, middle, and high schools within the designated special zones may operate schools that are not subject to Articles 23 and 29 of

<Elementary and Secondary Education Act> upon designation by the superintendent of the office of education of the special zone. This ensures autonomy in designing curricula and textbooks tailored to the needs of multicultural students.

- Relevant case: Since 2012, the Gunseo Mirae International School has operated as an integrated school under Article 60-3 (Alternative Schools) of <Elementary and Secondary Education Act>, Article 30 of the same Act, and Article 56 (Operation of Integrated Schools) of the Enforcement Decree. This school selects both Korean and multicultural students from Siheung City and provides education in Korean, English, and students' native languages (primarily Chinese and Russian), as well as global citizenship education and cultural diversity education. The school operates a non-graded system based on a credit system and is focused on student participation.

- The National Human Rights Commission of Korea separately operates various educational programs aimed at promoting human rights and raising awareness of human rights issues among public officials, teachers, social workers, and local council members. These programs include mandatory content on the prevention of hate and discrimination.
- The national curriculum includes elements to address discrimination regarding North Korean defectors through subjects such as Moral Education and Integrated Social Studies in elementary, middle, and high schools, which include content on improving the relationship between North and South Korea and the approaches to the issue of reunification, including education to foster understanding of North Korean defectors. The 2022 Revised National Framework for the Elementary and Secondary Curriculum also include a specific cross-curricular theme that fosters understanding of North Korean students, while four of the 10 cross-curricular themes (democratic citizenship education, human rights education, multicultural education, and unification education) emphasize the importance of respect for human dignity and rights, democratic citizenship, and respect for diversity in light of the increasing number of multicultural families and North Korean students. Unification education focuses on the peaceful reunification of the Korean Peninsula and aims to enhance competencies for the integration of the North and South Korean populations, with understanding of North Korean residents and students as part of the curriculum.

■ Other measures adopted to both prevent and eliminate discrimination in education and ensure equal access to all levels and types of education:

- The National Human Rights Commission of Korea, in cooperation with the National Council of Governors of Education, has issued a joint declaration titled the Joint Declaration for Equality and Respect for Human Rights in Schools, and Response to Hate Speech. The Commission has also developed and distributed various educational materials, including guidelines for preventing hate speech and resources aimed at raising awareness, to schools at all levels.
- The Ministry of Unification has appointed a Human Rights Protection Officer at temporary protection facilities for North Korean defectors to strengthen the protection of defectors' human rights. The Human Rights Protection Officer provides advice and recommendations for improvement regarding the protection of North Korean defectors' human rights and conducts human rights education for staff at temporary protection facilities. In accordance with Article 12-5 of <Enforcement Decree of the North Korean Defector Protection and Settlement Support Act>,

one Human Rights Protection Officer is assigned to each temporary protection facility to enhance the protection of applicants' human rights.

1.2 Equality of opportunities and inclusion in education

- Please indicate the actions taken/planned to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners in learning processes (*several items may be ticked*):

General measures:

- | | |
|---|--|
| ☒ <u>Legislation provides for inclusive education for all</u> | ☒ <u>Multiple and flexible learning pathways¹⁷ are provided for</u> |
| ☒ <u>Policy measures aim to enhance inclusion in education for all</u> | ☒ <u>Curricula and teaching methods are inclusive in design¹⁸</u> |
| ☒ <u>Teachers are trained on inclusive education¹⁶ and to value diversity</u> | ☒ <u>Multilingual and intercultural education is supported</u> |
| ☒ <u>Initiatives to address discrimination and promote cultural diversity and mutual acceptance</u> | |

☐ Other:

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

■ Legal Measures

- The Republic of Korea has strengthened legal measures based on Article 31 of the Constitution, Article 4 of <Framework Act on Education>, and subordinate laws.
- <Enforcement Decree of the Elementary and Secondary Education Act> was amended twice, first to support the smooth and efficient integration of multicultural and migrant-background students into public education (July 2020) and later to establish the basis for conducting a situational analysis on multicultural education (April 2024). As part of this effort, the Scholastic Ability Deliberative Committee was reformed to facilitate the review of academic qualifications for middle school admission, addressing the difficulties faced by migrant-background students. A Multicultural Education Support Centre will also be established to provide tailored educational support and to develop policies aimed at multicultural students.
- <Act on Guarantee of Basic Academic Ability> enacted in 2021 guarantees basic academic abilities of all students, thereby realizing an education system where students

¹⁶ Teachers are prepared to teach all student (beyond just students with disabilities), equipping them with knowledge, values and attitudes that permit every student to succeed. See: [UNESCO policy paper](#): Inclusive teaching: preparing all teachers to teach all students, 2020, p.14.

¹⁷ Multiple and flexible learning pathways are 'entry points and re-entry points at all ages and all educational levels, strengthened links between formal and non-formal structures, and recognition, validation and accreditation of the knowledge, skills and competencies acquired through nonformal and informal education' ([Education 2030 Framework for Action](#), para. 33). This may include student transfers between courses and institutions and diverse learning modalities (online, in-person, full-time, part-time, etc.) to respond to individual needs and interests.

¹⁸ In designing the curricula and teaching methods, care is given to ensure that all students are provided with an inclusive and supportive learning experience that offers them the opportunity to succeed whatever their background.

can learn according to their abilities. A comprehensive plan for ensuring basic academic abilities has been formulated, and inclusive education measures are being implemented, such as the establishment of a Basic Academic Ability Assurance Committee, the selection of students in need of learning support, and the provision of learning support education.

- <Act on the Support of Out-of-School Youth> was amended, and starting in 2024, information about youth who drop out of high school will automatically be linked to the support centres for out-of-school youth, enabling proactive learning support for these individuals.

■ Policy Measures

- The Ministry of Education announced <First Comprehensive Plan for Guaranteeing Basic Academic Abilities (2023-2027)> in October 2022, aiming to realize a national educational system that ensures all students achieve basic academic abilities. The plan consists of four core tasks—diagnostics, support, prevention, and foundation-laying—each with 2 to 4 specific actions to be completed by 2027.
- In 2023, the government announced <Support Plan for At-Risk Students and Out-of-School Youth>, which expands support for out-of-school youth to complete their education. Previously, only estimates of the number of out-of-school youth existed, but starting in 2024, basic statistics will be introduced to comprehensively track the number and location of out-of-school youth.
- <4th Basic Plan for Multicultural Family Policies (2023-2027)> includes enhancing multicultural acceptance based on mutual respect as one of its main pillars. It strengthens education to increase understanding of multiculturalism tailored to different groups, including the citizens, public officials, and staff of relevant organizations. To promote awareness of the need to respect diversity, discriminatory factors affecting multicultural families in the public sector and other areas are being assessed, with initiatives such as the improvement of the media environment and social awareness included as core activities. Additionally, under <2022 Multicultural Education Support Plan for Equality of Starting Lines>, efforts are made to create a school environment that embraces diversity by:
 - ① Expanding education on multicultural understanding for all students
 - ② Enhancing the multicultural education capacity of teachers
 - ③ Emphasizing connections with families and local communities.
- The 2022 Revised National Curriculum specifies in its Framework and other parts including Designing and Implementing the School Curriculum and Guidelines for the Compilation of Textbooks the importance of providing appropriate educational opportunities to learners with diverse characteristics without discrimination. The curriculum includes cross-curricular themes such as character education, democratic citizenship education, human rights education, and multicultural education, through which students learn the value of non-discrimination.

- In general, what challenges were encountered in the implementation of non-discrimination and equal opportunities principles in education? If needed, brief quantitative information may be added.

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Other relevant general measures, including gender equality

- Legislation provides for gender equality in education
- Policy measures aim to enhance gender equality
- Gender-responsive education sector planning is undertaken
- Providing positive or affirmative action measures
- Providing financial incentives and fellowships
- Teachers are trained (initial and in-service) on gender equality
- Teachers are trained to combat stigmatisation¹⁹
- Other:
- All barriers for pregnant girls and young mothers in education are eliminated to ensure the continuity of their education
- Re-entry programmes for young mothers are provided for
- Ensuring safe and adequate gender-sensitive sanitation facilities²⁰
- Curricula are rid of all stereotypes²¹ and bias
- Ensuring gender parity in science, technology, engineering and mathematics (STEM)
- Ensuring gender parity in technical and vocational training education and training (TVET)

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

- Legal Measures for Gender Equality in Education
 - Article 31-1 of <Constitution> (which states that "all citizens shall have an equal right to receive an education corresponding to their abilities") provides the legal foundation guaranteeing educational opportunities for both men and women. Article 4 of <Framework Act on Education> prohibits discrimination in education based on gender, religion, belief, race, social status, economic status, or physical condition.
 - <Framework Act on Education> was amended in 2021, establishing a legal requirement for gender equality education, which was previously conducted at the discretion of schools. Article 17-2 (Promotion of Gender Equality Awareness) requires the state and local governments to establish policies for gender equality education. Schools are now legally required to systematically implement gender equality education, including sex education, gender responsive education, and sexual violence prevention education (effective March 25, 2022). Furthermore, the Gender Equality Education Deliberation Council was established to review policies and systems for promoting gender equality awareness.
 - <Framework Act on the Prevention of Violence Against Women>, Article 19-3 (Education on Preventing Violence against Women), mandates that the Minister of Education and the superintendent of the office of education establish and implement policies for education on understanding and preventing violence against women in kindergartens and schools.
- Policy Measures to Enhance Gender Equality
 - In 2020, the Ministry of Education launched the Gender Equality Education Deliberation Council to strengthen the foundation for gender equality education policy. Policies

¹⁹ ' Stigmatisation is the act of treating someone or something unfairly by publicly disapproving of them' (Cambridge Dictionary).

²⁰ ' Gender-sensitive sanitation includes clean, safe and separate toilets, with access to water and garbage disposal' ([UNGEI blog post](#), Gender-sensitive sanitation, 2018)

²¹ Stereotype is a set idea that people have about what someone or something is like, especially an idea that is wrong' (Cambridge Dictionary).

include developing and implementing educational programs by developmental stage for elementary and secondary students, creating guidelines for teachers, conducting gender equality status surveys at national universities, and adding gender equality indicators to university information disclosure systems.

- As part of <Educational Officials Act> amendment (passed in November 2019), policies for gender equality in the appointment of faculty members at national and public universities are currently being implemented.

■ Initiation of Gender-Sensitive Education Programs

- <Framework Act on Gender Equality>, Article 18 (Gender-Responsive Education), mandates that the state and local governments provide education to all public officials to enhance their understanding of the impact of laws, policies, customs, and systems on both women and men. In addition, Article 36 (Gender Equality Education) requires efforts to promote gender equality awareness through education in family and schools, as well as in training courses of national and public training institutions, lifelong education institutions.

■ Affirmative Action / Financial Support and Fellowships

- <Act on Fostering and Supporting Women in Science and Technology> and <Basic Plan for Supporting and Fostering Women in Science and Technology> provide preferential treatment and financial support for women in STEM fields and female science and engineering students (e.g., a quota system for female principal investigators, additional points for women researchers in project selection, and start-up support for female graduate students in science and engineering).

■ Teacher Training on Gender Equality

- Teachers are required to complete at least one hour of mandatory education on sexual harassment, sexual violence, prostitution, and domestic violence prevention each year. Additionally, since the Teacher Certification Regulations were amended in 2021, gender-responsive education is now a mandatory part of the curriculum for teacher training institutions (e.g., colleges of education). Under this requirement, gender-responsive education must be provided at least four times in four-year teacher training programs and at least twice in shorter programs.

■ Removal of Barriers for Pregnant Girls and Young Mothers in Education

- Efforts have been made to ensure that all barriers to education for pregnant girls and young mothers are eliminated to guarantee the continuation of their education.

■ Curricula Free of All Stereotypes and Bias

- Under the 2022 Revised National Curriculum, common criteria for developing authorized textbooks aim to ensure that content does not promote discrimination in any area of life (political, economic, social, and cultural) based on gender, religion, or social status. Additionally, the National Human Rights Commission of Korea monitors elementary and secondary school textbooks and recommends improvements when gender stereotypes are found.

■ Gender Equality in STEM Fields

- <Act on Fostering and Supporting Women in Science and Technology> encourages female participation in STEM fields and provides support for female students in science and engineering. This Act recommends maintaining an appropriate ratio of female students in STEM fields (Article 8) and implementing a gender quota system for the hiring of women in STEM professions (Article 11). <Basic Plan for Fostering and Supporting

Women in Science and Technology> is established every four years to ensure the effective implementation of this law.

- Gender Equality in Technical and Vocational Education and Training (TVET)
 - <Act on the Promotion of Economic Activities and Prevention of Career Interruption of Women> supports the implementation of vocational education and training for women to promote economic participation and prevent career interruptions. The Women’s New Employment Centres, jointly operated by the Ministry of Gender Equality and Family and the Ministry of Employment and Labour, provide vocational training for women.

- What challenges were encountered in achieving gender equality in and through education? If needed, brief quantitative information may be added.

- Differences in gender equality awareness across educational levels and conflict due to misogynistic culture: While gender equality awareness among Korean youth is generally high, there is an increasing gap between male and female students as they progress through school levels. According to the 2023 youth statistics from the Korea Youth Policy Institute, 96.7% of upper elementary (grades 4-6), middle, and high school students believe that men and women should have equal rights in all respects. However, there is a 3.8% point gap in this belief between male students (95.0%) and female students (98.6%) (Ministry of Gender Equality and Family press release, May 29, 2024). This gender-based awareness gap has been continuously observed, and some studies point to conflicts arising from youth misogyny and sexual harassment culture as contributing factors.

- Does the legal minimum age for marriage conform to international standards (18 years) ²²:

Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child’s right to education as they are more likely to drop out of school and children who are not in school are more likely to get married.

■ Yes ☐ No

- Please provide reference to the relevant laws and provisions and indicate the exceptions to the legal age of marriage as well as the absolute minimum age:

- Article 807 of <Civil Act> specifies that a person who has reached the age of 18 may marry. Article 808 (Marriage Requiring Consent) stipulates that a minor must obtain parental consent to marry; if one parent is unable to exercise the right to consent, the consent of the other parent is required, and if neither parent is able to exercise the right, the consent of the minor’s guardian is necessary. A person under adult guardianship can marry with the consent of their parents or adult guardian, and Article 826-2 (Attaining Majority by Marriage) provides that a minor who marries shall be regarded as an adult.

National minorities:

For reference: Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities.

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| <ul style="list-style-type: none"> ■ <u>Legislation provides for the right to education of national minorities</u> ■ <u>Policy measures aim to enhance the right to education of national minorities</u> ■ <u>Policy elaboration includes consultations with local communities</u> ☐ The right to carry out their own educational activities is legally guaranteed for national minorities ☐ Educational standards are established for educational institutions run by national minorities ■ <u>Positive or affirmative action measures are provided for national minorities</u> ■ <u>Financial incentives and fellowships are provided for national minorities</u> ☐ Other²³: | <ul style="list-style-type: none"> ■ <u>Teachers are trained on intercultural education</u> ■ <u>Teachers are trained to combat stigmatisation²⁴</u> <ul style="list-style-type: none"> ● <u>Multilingual and intercultural education are supported</u> ● <u>Native language instruction is ensured for national minorities</u> ● <u>Adapting curricula and teaching and learning methods to their needs for national minorities</u> ■ <u>Curricula are rid of all stereotypes²⁵ and bias</u> |
|--|--|

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

- Legal Measures for the Right to Education of Ethnic Minorities
 - Article 10 of <Multicultural Families Support Act> prohibits discrimination against children and youth from multicultural families in childcare and education.
 - ① Neither the state nor local governments shall discriminate against children and juveniles of any multicultural family in providing care and education services for children and juveniles.
 - ② The state and local governments shall prepare measures for educational assistance to children and juveniles of multicultural families to help them quickly adapt to school life; and the Superintendent in each Special Metropolitan City, Metropolitan City, Special Self-Governing City, Do, and Special Self-Governing Province, may provide children and juveniles of multicultural families with extracurricular or after-school educational programs.
 - ③ The state and local governments shall endeavor to support preschool care and education services for members of multicultural families under 18 years of age, and to help such members develop language skills, may provide assistance necessary for improving their linguistic proficiency, such as teaching materials and learning support in teaching Korean language and the mother tongue of their father or mother who is an immigrant by family.
 - ④ Principals of child-care centers under Article 10 of <Child Care Act>, heads of kindergartens under Article 7 of <Early Childhood Education Act>, heads of all types

²³ Please see: [UNESCO report](#) 'The right to education of minorities: Overview of States' measures reported in the 10th Consultation on the 1960 Convention and Recommendation against Discrimination in Education, 2023.

²⁴ Supra note 15.

²⁵ Supra note 16.

of schools under Article 2 of <Elementary and Secondary Education Act>, and heads of other organizations prescribed by Presidential Decree shall take necessary measures to prevent children and juveniles of multicultural families from being discriminated against in providing care and education services for children and juveniles.

- Article 28-2 of <Elementary and Secondary Education Act> guarantees equal educational opportunities for multicultural students and seeks to ensure a school environment where diversity is respected.

③ The head of a school shall endeavor to guarantee equal educational opportunities for multicultural students, etc., and to create a school environment in which all school members respect diversity and live in harmony.

- Articles 19 and 75 of the Enforcement Decree ensure the right of returnees and multicultural students to apply for elementary school admission or transfer.
- Article 54-5 calls for the establishment of Multicultural Education Support Centres to provide educational support, teacher training, and multicultural education programs tailored to local needs.

■ Policy Measures Aim to Enhance the Right to Education of Ethnic Minorities

- <Human Capital Development Plan for Migrant Students (2023-2027)>, developed by the Ministerial Meeting of Social Affairs in cooperation with the relevant government ministries, promotes policies to strengthen the Korean language education system, foster talented individuals, and improve educational conditions in regions with a high concentration of multicultural students. The plan clearly outlines the goal of creating a discrimination-free educational environment (Vision: Establish an educational environment where all students with migration backgrounds can grow into talented individuals without discrimination).

■ Policy Elaboration Includes Consultations with Local Communities

- Article 54-5 ② of <Enforcement Decree of the Elementary and Secondary Education Act> mandates that regional Multicultural Education Centres cooperate with relevant institutions within the community to establish a collaborative system for multicultural education.
- <4th Basic Plan for Multicultural Family Policies (2023-2027)> emphasizes strengthening the policy cooperation system for multicultural family policies. One of the three main policy directions is to ensure that education policies for students with migration backgrounds are addressed through community participation, rather than solely by schools or teachers. The plan also includes expanding opportunities for interaction and communication between multicultural families and local residents.

■ Affirmative Action Measures for Ethnic Minorities

- Article 29 of <Enforcement Decree of the Higher Education Act> permits special admissions for North Korean defectors, foreigners, and overseas Koreans, allowing for quota exemptions in university admissions.
- Article 42-6 of <Enforcement Decree of the Higher Education Act> designates North Korean defectors, foreigners, and overseas Koreans as "persons who require differential educational compensation" and includes them in the social integration admissions process.

■ Financial Support and Fellowships for Ethnic Minorities

- Article 10 ③ of <Multicultural Families Support Act> states that the state and local governments shall endeavor to support preschool care and education services for members of multicultural families under 18 years of age, and to help such members

develop language skills, may provide assistance necessary for improving their linguistic proficiency, such as teaching materials and learning support in teaching Korean language and the mother tongue of their father or mother who is an immigrant by family.

- <4th Basic Plan for Multicultural Family Policies (2023-2027)> allocates significant funding for tailored support for multicultural children and youth. The budget increased from KRW 3.93 billion in 2022 to KRW 46.327 billion in 2023.
- According to <Human Capital Development Plan for Migrant Students (2023-2027)>, the Ministry of Education budget for supporting migrant-background students is estimated to be KRW 101.4 billion in 2024, with a total of KRW 311 billion projected for the period from 2024 to 2027.

■ Teachers Are Trained on Intercultural Education

- Teachers are required to complete statutory training each year, including human rights, gender equality, prevention and eradication of sexual harassment and sexual violence, disability awareness improvement, and multicultural education.

■ Teachers Are Trained to Combat Stigmatization

- Teachers receive training aimed at addressing stigmatization.

● Multilingual and intercultural education is supported.

- Multicultural education policy schools, operated by the Ministry of Education, provide language education and bilingual education programs.

● Native language instruction is ensured for ethnic minorities.

- Article 10-3 of <Multicultural Families Support Act> guarantees language support for ethnic minorities, including free Korean language education, dual-language classrooms, and in-home tutoring (Korean) is provided through multicultural family centres.

■ Curricula and teaching methods are adapted to the needs of ethnic minorities.

- Article 19-4 of <Elementary and Secondary Education Act> specifies that multicultural children and youth can enrol in or transfer to elementary schools with special classes for multicultural students, ensuring the development of curricula tailored to the needs of national minorities.
- Regions with a high concentration of multicultural children and youth are designated as Special Zones for Internationalization of Education, and <Special Act on the Designation, Operation, and Promotion of Special Zones for Internationalization of Education> provides autonomy for schools in these areas to adapt curricula and teaching materials to meet the needs of multicultural students.

■ Curricula are rid of all stereotypes and bias.

- The National Human Rights Commission of Korea regularly monitors national curriculum and elementary and secondary school textbooks to identify and address any elements that violates human rights including stereotypes or bias related to gender roles, multicultural families, or disabilities.

- What challenges were encountered in realizing the right to education of minorities? If needed, brief quantitative information may be added.

- Overall, while efforts to realize the educational rights of multicultural students currently enrolled in schools appear to be active, support for children and youth who are unable to enter school remains lacking. For example, according to the Enforcement Decree of the Elementary and Secondary Education Act, students who have migrated from foreign countries can enrol in school

with only a residence certificate. Although elementary school admissions are generally granted, there are cases where students are denied admission at the high school level. Furthermore, since Korean language proficiency is a major factor that affects academic life as a whole, there is a need to establish learning support measures to ensure adequate protection of educational rights.

- In the case of Korean nationals, an official school admission notice is automatically sent when children reach school age, ensuring their enrolment. However, for foreign nationals, this is not the case, and they may miss the opportunity to enrol in school. This issue is particularly prominent for foreign nationals who enter Korea during the school age period. Since it is not considered problematic for them not to enrol in school, unlike Korean nationals, they may not receive an education unless they or their parents actively seek enrolment.

Indigenous people:

- | | |
|--|--|
| ☐ Legislation provides for the right to education of indigenous people | ☐ Financial incentives and fellowships are provided for indigenous people |
| ☐ Policy measures aim to enhance the right to education of indigenous people | ☐ Teachers are trained on intercultural education |
| ☐ Policy elaboration includes consultations with local communities | ☐ Teachers are trained to combat stigmatisation ²⁶ |
| ☐ The right to carry out their own educational activities is legally guaranteed for indigenous people | ☐ Multilingual and intercultural education are supported |
| ☐ Educational standards are established for educational institutions run by indigenous people | ☐ Native language instruction is ensured |
| ☐ Positive or affirmative action measures are provided for indigenous people | ☐ Adapting curricula and teaching and learning methods to their needs for indigenous people |
| ☐ Other: | ☐ Curricula are rid of all stereotypes ²⁷ and bias |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

- What challenges were encountered in realizing the right to education of indigenous people? If needed, brief quantitative information may be added.

²⁶ Supra note 15.

²⁷ Supra note 16.

People on the move (migrants, refugees, asylum-seekers, stateless persons and internally displaced persons) and trapped populations²⁸:

- | | |
|---|---|
| <ul style="list-style-type: none"> ■ <u>Legislation provides for their right to education</u> ■ <u>Policy measures aim to enhance their right to education</u> ■ <u>Inclusion in mainstream schools is ensured</u> ■ <u>Positive or affirmative action measures are provided for</u> ☐ All administrative barriers to access education are removed ☐ Alternative administrative procedures (placement tests, portfolio of evidence, etc.) to overcome administrative barriers²⁹ are provided for ■ <u>Teachers are specifically trained to ensure their inclusion</u> ■ <u>Teachers are trained to combat stigmatisation³⁰</u> ☐ Other: | <ul style="list-style-type: none"> ■ <u>Financial incentives and fellowships are provided for</u> ■ <u>Auxiliary assistance is provided</u> ■ <u>Multiple and flexible learning pathways³¹ are provided</u> ☐ Curricula are rid of all stereotypes³² and bias ☐ Accelerated learning programmes are provided ■ <u>Non-formal and/or alternative education programmes are provided</u> ☐ Language classes to newcomers are provided for ☐ Multilingualism and intercultural education are encouraged |
|---|---|

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

- Legal Measures for the Right to Education of People on the Move
 - <North Korean Defectors Protection and Settlement Support Act> and its Enforcement Decree.
 - Policy Measures Aim to Enhance Their Right to Education
 - Educational policy for North Korean students aims to encourage their admission and integration into mainstream schools where they study alongside other students. The Ministry of Unification's <4th Master Plan for Settlement Support for North Korean Defectors (2024-2026)> and the Ministry of Education's annual <Tailored Educational Support Plan for North Korean Students> aim to eliminate discrimination and ensure equal access to education for North Korean defectors.
 - Inclusion in Mainstream Schools is Ensured
 - To facilitate equal access to education for North Korean defectors, a preparatory school called the *Hana-dul School* is operated within the Hana Centre (a social adaptation education facility for North Korean defectors). After securing housing in their settlement

²⁸ 'Trapped populations are those who are unable to migrate to safe locations and remain trapped in locations vulnerable to the impacts of climate hazards' ([UNESCO report](#): The impact of climate displacement on the right to education, 2020, p. 2).

²⁹ While lack of documentation (such as identity papers, birth certificates, residency permits, etc.) should not be an obstacle to access education, these can constitute a barrier to education See: [UNESCO publication](#): Handbook on the right to education, 2018, p. 96.

³⁰ Supra note 15.

³¹ Supra note 13

³² Supra note 16.

area, students are supported in attending local schools, where they receive preparatory and supplementary lessons.

- A system exists to recognize academic qualifications obtained by North Korean defectors abroad or in North Korea as equivalent to domestic qualifications. Article 13 of <North Korean Defectors Protection and Settlement Support Act> provides that the academic qualifications of protection subjects can be recognized based on regulations specified by presidential decree.
- North Korean students are guaranteed the same access to quality free primary and secondary education as all citizens. Middle and high school students seeking admission are exempt entrance fees, tuition fees, school operation support funds, and dormitory fees.

■ Positive or Affirmative Action Measures are Provided

- To ensure fair access to higher education, special admissions processes (quota exemptions) are available for North Korean defectors, and financial support is provided to address socioeconomic disparities. These measures help North Korean defectors under the age of 34 to enter and study at four-year universities or colleges of education, while those applying to vocational colleges, cyber universities, and lifelong education institutions are not subject to age restrictions.
- Article 44 of <North Korean Defectors Protection and Settlement Support Act> provides for the admission and enrolment of North Korean defectors in domestic schools based on the educational standards established by relevant laws. Article 24 of the Act and Article 29 of the <Enforcement Decree of the Higher Education Act> stipulate special admissions processes for North Korean defectors, while Article 46 of the Enforcement Decree of <North Korean Defector Protection and Settlement Support Act> outlines financial support for higher education.

■ Financial Support and Fellowships Are Provided

- A number of financial support measures facilitate access to education for North Korean defectors. Middle and high school students seeking admission are exempt entrance fees, tuition fees, school operation support funds, and dormitory fees. North Korean defectors who wish to transfer to or enrol in higher education institutions, entrance fees, tuition fees, and association fees may be waived for national or public educational institutions and half of the entrance fees and tuition fees may be subsidized by private educational institutions.
- Article 46(Standards for Educational Support) of <Enforcement Decree of the North Korean Defector Protection and Settlement Support Act> and <Elementary and Secondary Education Act> exempt entrance fees, tuition fees, school operation support funds, dormitory fees. According to the <Enforcement Decree of the Elementary and Secondary Education Act>, a portion of living expenses may be provided for individuals who enter or transfer into industry-specific high schools or specialized high schools. For those who are transferred to or enrolled in national or public educational institutions, entrance fees, tuition fees, and association fees may be waived and half of the entrance fees and tuition fees may be subsidized by private educational institutions.

■ Auxiliary Assistance is Provided

- Tailored educational support for North Korean students ensures their right to quality education, helping reduce dropout rates and improve adaptation. Policy efforts include academic mentoring, psychological counselling, Korean language education, and career guidance to ensure equitable educational opportunities. Specifically, schools conduct 1:1 personalized mentoring between teachers and North Korean defector students, and schools with a high number of defector students are supported by dispatching psychological counsellors, unification-specialist teachers with teaching experience in

North Korea, and Korean language instructors proficient in Chinese to assist with adaptation and learning. Considering the challenging family backgrounds of these students, support focuses on providing psychological and emotional stability, a crisis support system for students in vulnerable situations, and initiatives to develop competencies and address learning gaps. This support is implemented under <4th Basic Plan for the Settlement Support of North Korean Defectors (2024-2026)> by the Ministry of Unification and the annual <Tailored Educational Support Plan for North Korean Defector Students> established by the Ministry of Education.

■ Multiple and Flexible Learning Pathways Are Provided

- Alternative education systems are in place for North Korean youth who find it difficult to adapt to mainstream schools. Specialized schools for North Korean students, alternative schools, and group homes provide various flexible learning pathways. For example, Hankyoreh Middle and High School serves as a transitional institution for North Korean students. Various accredited alternative schools and unaccredited alternative education facilities, such as Yeomyung School, Haneul-Ggum School, Dream School, and Jangdaehyun School, are operated to support individuals who are over school age, experience school maladjustment, or seek specialized programs. These facilities and programs are expected to reduce dropout rates and provide quality educational access opportunities for out-of-school youth.
- Relevant laws, including Article 24 of <North Korean Defectors Protection and Settlement Support Act> and Article 44-2 and 45-2 of its Enforcement Decree, specify financial support for schools offering preparatory and supplementary education for North Korean defectors.

■ Curricula Are Rid of All Stereotypes and Bias

■ All Administrative Barriers to Access Education Are Removed

■ Teachers Are Specifically Trained to Ensure Their Inclusion

- Article 24 (Educational Support) of <North Korean Defectors Protection and Settlement Support Act> specifies that efforts must be made to secure professional personnel for the education of protected individuals and to provide educational supports including academic assessment and evaluation, management of educational information, education, training, and learning activities.
- The Ministry of Education's annual tailored education support plan includes teacher training programs aimed at improving awareness of North Korean defector students and eliminating discrimination, and in-service trainings for teachers working with defector students.

□ Provision of an Accelerated Learning Program.

■ Non-Formal and/or Alternative Education Programs Are Provided

- Alternative education systems are in place for North Korean youth who find it difficult to adapt to mainstream schools under specialized schools for North Korean students, alternative schools, and group homes. Article 44-2 and 45-2 of the Enforcement Decree, specify financial support for schools offering preparatory and supplementary education for North Korean defectors of their children. Various accredited alternative schools and unaccredited alternative education facilities, such as Yeomyung School, Haneul-Ggum School, Dream School, and Jangdaehyun School, are operated to support individuals who are over school age, experience school maladjustment, or seek specialized programs. These facilities and programs are expected to reduce dropout rates and provide quality educational access opportunities for out-of-school youth.

■ Language Classes for Newcomers Are Provided

- Have specific measures been adopted for climate displaced persons?

☐ Yes ☐ No

- Please elaborate:

- What challenges were encountered in realizing the right to education of migrants, refugees, asylum seekers, stateless persons and IDPs? If needed, brief quantitative information may be added.

- Young North Korean defectors often experience significant psychological and emotional difficulties due to the loss of or separation from parents and family members during their escape from North Korea. Many form new family units while staying in China, often resulting in single-parent households. With the weakening of mutual support and protection within families, North Korean youth continue to struggle emotionally and psychologically even after entering the Republic of Korea. According to a survey on the family makeup of North Korean youth living in the Republic of Korea, 49.4% of North Korean-born youth and 45.2% of third-country-born youth lived in single-parent households (2016 Survey on the Status of North Korean Youth, Korea Hana Foundation, 2016).
- North Korean students, along with those born in third countries, commonly face identity confusion, difficulties in forming friendships, and challenges in their home environments, which further impact their academic performance. Although many possess basic Korean language skills, they often struggle to communicate effectively in academic settings due to differences in terminology and educational culture, leading to difficulties in understanding lessons and participating in class. This issue is particularly severe for North Korean youth born in China, who face even greater language barriers. Moreover, many North Korean students who transfer to mainstream schools choose to hide their backgrounds, which can hinder the development of a healthy sense of identity. According to a survey on the challenges faced by North Korean youth in school life, 62.9% of North Korean-born youth reported “no significant difficulties,” but 23.7% cited “keeping up with school lessons,” and 4.4% mentioned “making friends” as their main challenges in school life (2020 Survey on the Status of North Korean Youth, Korea Hana Foundation, 2020).

People with disabilities:

■ Legislation provides for their right to education

■ Policy measures aim to enhance their right to education

■ Inclusion in mainstream schools is ensured

■ Special schools are used as resource centers to inclusive schools

■ Mainstream teachers are specifically trained on disabilities

☐ Teachers are trained to combat stigmatisation³³

■ Auxiliary assistance is provided

■ Curricula and teaching and learning methods are adapted

☐ Positive or affirmative action measures are provided

☒ Financial incentives and fellowships are provided

☐ Other

☒ Curricula are rid of all stereotypes³⁴ and bias

☒ Education infrastructure and learning materials are adapted

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

■ **Legislation for the Right to Education of Persons with Disabilities**

- <Act on the Prohibition of Discrimination against Persons with Disabilities and Remedy against Infringement of their Rights> prohibits discrimination based on disability in all areas of life. It aims to ensure full social participation and the realization of equal rights for persons with disabilities by effectively addressing discrimination and protecting their rights, thereby promoting their dignity and value as human beings. Articles 13 and 14 in Section 2 of this Act specifically prohibit discrimination in education, stipulating that the heads of educational institutions must not deprive persons with disabilities of educational opportunities and must provide reasonable accommodations to prevent any disadvantage in their educational activities.
- <Act on Special Education for Persons with Disabilities>, based on Article 18 of the <Framework Act on Education>, specifies that the state and local governments shall provide an inclusive educational environment for individuals with disabilities and those with special educational needs, ensuring that education is tailored to the type and degree of disability across different stages of life to promote self-actualization and social integration.
- Articles 3 (Compulsory education), 4 (Prohibition of discrimination), and 11 (Installation and Operation of Special Education Support Centres) specifically outline the provision of free and compulsory education, services, and the prohibition of participation-related discrimination.
- Recent legislative amendments have strengthened the right to education for persons with disabilities, including the mandatory establishment of a system for reporting human rights violations (Dec. 2019), allowing adjustments to curricula based on disability type, age, severity, and educational needs (Dec. 2019), guaranteeing the right to education for periods when attendance is disrupted (Mar. 2021), and prohibiting the rejection of school admissions for applicants with disabilities (Mar. 2021). Further reforms include adjusting class sizes based on the degree of disability and for the academic continuity of persons with disabilities such as psychological support (Dec. 2021), and establishing a national centre to systematically support higher education for persons with disabilities (Oct. 2022). A full revision of provisions on inclusive education specially mentions the mandatory establishment and execution of inclusive education plans, prevention of discrimination, and provision of conditions for inclusive education (Feb. 2024).

■ **Policy Measures Aim to Enhance the Right to Education of Persons with Disabilities**

- In 2022, the Ministry of Education established <6th Five-Year Plan for the Development of Special Education (2023-2027)> under the vision of Realizing Inclusive, Customized Special Education under National Responsibility. The plan aims to guarantee equal starting points for children with disabilities, create diverse educational environments for those in need of special education, and reduce the gap in higher and lifelong education between persons with and without disabilities.
- The Republic of Korea has developed a separate national curriculum for special education students, known as the *Special Education Curriculum*, which is tailored to their needs. The 2022 Revised National Curriculum incorporates inclusive education by providing

personalized curricula for special education students, particularly those with developmental or severe disabilities.

■ Inclusion in Mainstream Schools is Ensured

- <Act on Special Education for Persons with Disabilities> prohibits the rejection of school admissions for applicants with disabilities, ensuring their inclusion in mainstream schools. The 2022 Revised National Curriculum explicitly includes special education students, and efforts have been made to enhance inclusive education by fostering collaboration between general and special education teachers, who share responsibility for the education of students with disabilities. The curriculum also introduces guidelines for developing resources and offering related training and consultations to support inclusive education.

■ Special Education Teachers are Key Resources for Inclusive Schools

- Metropolitan and provincial offices of education operate Special Education Management Committees, which include school administrators and special education teachers, to review and develop local policies and initiatives for special and inclusive education.
- According to the Ministry of Education's <2023 Special Education Operation Plan>, the number of inclusive model schools *Jungdaun* School, promoting consulting for inclusive education research schools and where general and special education teachers collaborate to enhance educational outcomes for students with disabilities, will be expanded to 200 schools. Experienced special education teachers are key resources for advancing inclusive education.

■ Mainstream Teachers are Specifically Trained on Disabilities

- General teachers receive training on inclusive education, and pre-service teachers must complete at least two credits in special education courses as part of their graduation requirements.
- The Ministry of Education is working to enhance the inclusive education environment through teacher capacity-building as part of its five-year plan. The School Disability Awareness Index, developed in 2022, objectively measures the level of disability awareness among students and teachers, enabling targeted improvements in disability awareness education. Plans have also been announced to develop and disseminate disability awareness education program and to expand inclusive education-related courses in teacher training programs.

■ Teachers are Trained to Combat Stigmatization

- Teachers receive education and training in special education pedagogy and disability awareness during their pre-service programs. However, in practice, some parents may avoid having their children diagnosed as special education students due to concerns about stigmatization, and there is currently no institutional framework in place to address this issue when it occurs.

■ Auxiliary Assistance is Provided

- The 6th Five-Year Plan includes measures to strengthen the support system for special education students through Special Education Support Centres (expected to increase to 197 centres by the end of 2024). These centres facilitate cooperation between schools and local agencies to provide tailored support for students with disabilities, including the creating of AI-based EduTech environment considering the types and characteristics of disabilities and the provision of digital literacy resources to help them adapt to new educational environments.
- In June 2022, additional support tailored to the type of disabilities was enhanced which includes tailored educational programs for severe and multiple disabilities who are newly

acknowledged as special education students, introduction of appropriate teaching and learning systems, and support for behaviour management interventions.

- In February 2024, programs were also implemented to support the transition of special education students into elementary school, with 89.2% of students (7,204 out of 8,080 students) participating in pre-entry and early-entry support programs.

■ **Curricula and Teaching and Learning Methods are Adapted**

- In the 2022 Revised National Curriculum, the section Equal Opportunities for All Students specifies that when establishing and managing classes for students with special needs, schools may adjust the curriculum or use the special education curriculum textbooks and teaching and learning materials for inclusive education, taking into account the degree and types of students' disabilities. As part of improvements to the special education curriculum, the curriculum structure has been revised to include subjects, creative activities, and daily life activities, to tailor education to the needs of special education students. The National Framework for the Elementary and Secondary School Curriculum include provisions for restructuring achievement standards, teaching and learning methods, and evaluation processes to accommodate the characteristics of students with disabilities, including the use of universal design for learning, instructional materials support, and evaluation adjustment plans for students with disabilities.

■ **Positive or Affirmative Action Measures are Provided**

■ **Financial Support and Fellowships are Provided**

- Under Article 28 of <Act on Special Education for Persons with Disabilities>, metropolitan and provincial offices of education and schools are required to provide services or goods such as family counselling, parental education, physical, psychological, and emotional support, therapy, learning support devices, and transportation for students with disabilities.
- The Ministry of Education provides lifelong education vouchers to enable learners with disabilities to independently pursue lifelong education programs of their choice (supporting 3,000 individuals in 2023). Additionally, lifelong education vouchers have been expanded through the 'lifelong learning city' operations for persons with disabilities, in collaboration with local governments.

■ **Curricula are Rid of All Stereotypes and Bias**

- To strengthen support for inclusive education and eliminate stereotypes and biases, the 6th Five-Year Plan includes the use of the School Disability Awareness Index to assess awareness levels among students and teachers in elementary and secondary schools. Based on these assessments, disability awareness education programs are developed and disseminated. Special efforts are also made to strengthen the competencies of pre-service, general, and special education teachers, and create a respectful educational environment by conducting educational programs for teachers, parents, and other stakeholders.

■ **Education Infrastructure and Learning Materials are Adapted**

- The Ministry of Education, following the 6th Five-Year, is enhancing the role of Special Education Support Centres (198 centres as of 2022) as hubs to strengthen collaboration between schools and local agencies. Efforts are being made to improve the physical infrastructure of these centres and increase the number of dedicated personnel to efficiently and systematically support special education.
- In addition, support for educational services tailored to the type and severity of disabilities is being expanded. This includes the development and supply of alternative learning materials, the creation of teaching and learning methods, and the dissemination of programs utilizing digital devices.

- What challenges were encountered in realizing the right to education of people with disabilities? If needed, brief quantitative information may be added.

■ **Challenges Encountered in Realizing the Right to Education of People with Disabilities**

- Although efforts are being made to strengthen tailored support and inclusive education for students with disabilities under <6th Five-Year Plan for the Development of Special Education (2023-2027)>, further improvements in conditions are needed. In particular, there is a need to enhance the capacity to provide individualized classes at the middle and high school levels. While the number of special education support staff has increased (from 13,728 in 2020 to 15,785 in 2023 according to statistics on special education), there is still a shortage. Overcrowded special education classrooms are still common (about 8.7%, Ministry of Education, 6th Five-Year Plan for the Development of Special Education (2022), p. 8), and the placement rate of special education teachers remains insufficient at around 83.4% (as of 2022, p. 9). There is a need for more practical and detailed training for teachers on how to support students with disabilities in integrated classrooms, focusing on specific methods by school level and disability type.
- While the special education curriculum is provided and its integration with the general education curriculum is allowed in the 2022 Revised National Curriculum, teachers face difficulties in effectively integrating the two curricula independently and in implementing the alternative methods that may be required in teaching both curricula.
- The rate of diagnosis for special education needs in the Republic of Korea is relatively low by international standards. Approximately 2.0% of all students are classified as persons eligible for special education, which is much lower than the international average of 5–10% (Special Education Statistics, Ministry of Education (2024)). This low percentage is likely due to various factors, including overly strict criteria for disability diagnosis and parental reluctance to request evaluations due to concerns about stigmatization. However, with recent efforts to relax the disability criteria and strengthen support for special education, the proportion of special education students has increased by 0.1 percentage points each year from 2020 to 2024.
- The general education system in the Republic of Korea is still largely based on a philosophy of competition and meritocracy. Critics argue that provisions for inclusive education and the right to education for students with disabilities are lacking in <Framework Act on Education> and <Elementary and Secondary Education Act>. The system is often criticized for focusing on helping students with disabilities meet the average standards of general students rather than fostering their individual educational growth based on their unique needs, which is viewed as adhering to a deficit model.

Students from poor households:

■ Financial incentives and fellowships for school enrolment are provided

■ Teachers are trained to combat stigmatisation³⁵

■ Transport, meals and education material are subsidised or provided free of charge beyond compulsory education

■ Curricula are rid of all stereotypes³⁶ and bias

■ Positive or affirmative action measures are provided

■ Other:

³⁵ Supra note 15.

³⁶ Supra note 16.

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

- Financial Incentives and Fellowships are Provided
 - A national scholarship system has been established, which includes:
 - ① (Secondary) the Lottery Fund Dream Ladder Scholarship Program, National Scholarships for Elementary and Secondary Students, Gifted Talent Development Project;
 - ② (University) Full tuition support for students from low-income and secondary poor families.
- Transport, Meals, and Educational Material are Subsidized or Provided Free of Charge Beyond Compulsory Education
 - The free high school education policy ensures that all students, regardless of family circumstances, region, or socioeconomic background, have equal access to education by covering entrance fees, tuition fees, school operational support funds, textbook purchase costs, and meal expenses.
 - A system is in place provide education aid and education expenses support for students from low-income families:
 - ① (Educational Aid) Under <National Basic Living Security Act>, elementary, middle, and high school students from households earning less than 50% of the median income receive educational activity support funds, high school textbooks, and funds to cover entrance fees and tuition fees,.
 - ② (Education Expense Support Program for Elementary and Secondary Students) Based on <Elementary and Secondary Education Act>, this program, in cooperation with metropolitan and provincial offices of education, provides after-school vouchers, IT support (PCs and internet access), and high school tuition fees (entrance fees, tuition fees, school operation support funds) for students from low-income households (recipients of basic livelihood benefits, single-parent families, legally recognized borderline-income families, etc.).
- Positive or Affirmative Action Measures are Provided
 - In accordance with Article 29(14) of <Enforcement Decree of the Higher Education Act>, special admission programs (quota exemptions) are implemented for rural and low-income students to promote equal opportunities in university admissions.
- Teachers are Trained to Combat Stigmatization
 - Various teacher training programs are being operated to enhance the understanding of multicultural education and improve the ability to guide vulnerable students with tailored support.
- Education Infrastructure and Learning Materials are Adjusted
 - Policies have been implemented on a continuous basis to improve educational conditions in rural, remote, and underprivileged areas, including:
 - ① "Support for Excellent High Schools in Rural Areas" (2004–2009)
 - ② "Year-Round Care Schools in Rural Areas" (2009–2011)
 - ③ "Promotion of Rural Boarding Schools" (2009–2013)
 - ④ "Improving Learning Conditions for Students in Rural Areas through ICT" (2013–2018)
 - ⑤ "Support for Rural Schools' Unique Program Operations" (2018–present)
- Curricula are Rid of All Stereotypes and Bias

- Multicultural education programs are integrated with the general school curriculum, including subject-based and creative experiential activities.
- The Nuri Curriculum, elementary education curriculum, and middle school social studies curriculum all include contents of multicultural education and global citizenship education.

■ Other Measures

- Legal Measures: Article 60-4 of <Elementary and Secondary Education Act> mandates financial support for students from low-income families (including those covered by <National Basic Livelihood Security Act>).
- Education Welfare Priority Support Program:
 - ① (Target) Students receiving educational aid, students from borderline-income families defined by the superintendent of the office of education, single-parent family students, North Korean defector and multicultural students, special education students, and other students identified by the superintendent.
 - ② (Support) Comprehensive support, including educational welfare officers assigned to schools with high concentrations of vulnerable students, and programs related to the curriculum, such as learning, cultural, psychological, and emotional support, and welfare services.
- Financial support for tuition fees, textbooks, meals, and transportation.
- Learning support and other services such as dental and ophthalmic care, learning materials, home visits, and snack costs.
- Cultural experiences: Field trips and experiential learning activities to address the lack of cultural opportunities and maximize educational effects.
- Psychological counselling and mentoring: Student counselling, psychological testing, psychological therapy, and participation in school maladjustment prevention programs.

- What challenges were encountered in realizing the right to education of students from poor households? If needed, brief quantitative information may be added.

■ Financial burden due to economic hardship: Despite the measures noted above, students from low-income families and other vulnerable groups face significant challenges due to the financial burden of educational costs, including tuition fees, textbook fees, learning materials, and transportation expenses. This economic pressure negatively impacts their overall educational experience and is a major factor contributing to higher dropout rates among these students.

2. Progress made with respect to implementing the right to education across all levels and forms of education

2.1 Early childhood care and education

For reference: Early childhood care and education (ECCE) is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of ECCE over the years. The Committee on the Rights of the Child initially recognized “the right to education during early childhood as beginning at birth” (General Comment No. 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation³⁷ and more recently, the Tashkent Declaration and Commitments to Action for Transforming Early Childhood Care and

Education³⁸. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to “the provision of at least one year of free and compulsory pre-primary education”.

- Please indicate the measures taken to ensure access to quality ECCE (*several items may be ticked*):

- | | |
|--|--|
| <p>☒ Prior to pre-primary education, ECCE services are free</p> <p>☐ Prior to pre-primary education, ECCE services are affordable</p> <p>☒ ECCE services are accessible on a non-discriminatory basis</p> | <p>☒ ECCE services respect a child’s need for early cognitive and social development, foundational learning, responsive care, nutrition, health, safety, protection, and play.</p> |
|--|--|

- Please elaborate further on the measures taken:

- Free ECCE services are provided prior to pre-primary education
 - Free Early Childhood Education and Care (ECCE) was introduced in 2012/13. According to Article 24 (Free Education) of Chapter 4 of <Early Childhood Education Act>, the three years of early childhood education before entering elementary school are provided free of charge, with costs covered by the state and local governments, based on the principle of supporting the child’s guardians. Under Article 34 (Child Care without Compensation) of <Child Care Act>, the government and local authorities are mandated to provide free childcare, with additional support for children with disabilities, children from multicultural or multi-child families, and childcare allowances for children who do not attend formal childcare or education institutions.
- ECCE services are accessible on a non-discriminatory basis
 - With the introduction of free ECCE services, access is provided on a non-discriminatory basis. However, due to the dual system of early childhood education and childcare, there is a disparity in the quality of services. To address early developmental and learning gaps and to provide quality services for all children aged 0-5, the Ministry of Education was designated as the lead agency for integrating the ECCE system. In January 2023, a joint plan titled *National Responsibility for Safe and Assured Early Education and Care from Birth* was announced by the government. In June, the administration of early childhood education and childcare has been consolidated under the Ministry of Education followed by the announcement of <Action Plan to Integrate Early Childhood Education and Childcare> with an aim to standardize and raise the quality of educational and childcare services and to establish a model for integrated early childhood education and childcare institutions
 - <3rd Five-Year Plan for the Development of Early Childhood Education (2023-2027)>, developed by the Ministry of Education in 2022, plans to expand support for vulnerable groups to ensure access to high-quality early education. The eligibility for support, currently limited to legally recognized low-income households (as of 2022), will expand to include children of national merit award recipients, North Korean defectors, and multicultural families by 2025. Additionally, 400 new special education classes and 17 integrated kindergartens (up from 8 in 2022) will be established by 2027 to guarantee mandatory education and promote inclusive education for children with disabilities. Support will also be expanded for children from multicultural families, including the assignment of bilingual support staff, the development of programs and materials to

³⁸ Which commits states to “Enhance policy and legal frameworks to ensure that the right to education includes ECCE”

assist teachers in guiding play and communication for multicultural children, and strategies for communicating with parents.

- ECCE services respect a child's need for early cognitive and social development, foundational learning, responsive care, nutrition, health, safety, protection, and play
 - The 3rd Five-Year Plan aims to expand after-school programs, assign healthcare and nutrition teachers to all kindergartens, and create a safe and secure environment for young children. To provide special support for children, early intervention will be implemented based on health screenings and developmental assessments of infants and toddlers (beginning in 2023). This will include linking children in need of early intervention with treatment programs, providing counselling, and offering support teachers in classrooms.
 - The 2024 Integration Action Plan outlines strategies to strengthen emotional and psychological support for infants and toddlers, develop a curriculum for children aged 0-5 that supports educational growth through play, and establish standardized criteria for integrated care institutions to ensure a safe and comfortable environment for children.

- Is compulsory and free of charge pre-primary education available?

- ☐ Pre-primary education is compulsory. Please provide the age of enrolment and duration:

- ☒ Pre-primary education is **not** compulsory.

- ☒ Pre-primary education is free of charge for all. Please provide the duration and indicate the extent to which it is free:

- Pre-primary education is provided free of charge for children aged 3-5, with 4 to 5 hours of instruction per day. Additionally, funded childcare is provided for children aged 0-2. While there are some differences in the specific items covered depending on the type of institution (e.g., public, private, kindergarten, day-care centres), tuition fees are generally included within the scope of free services. As of 2023, subsidies for early childhood education and childcare have been increased to 280,000 KRW per child per month, and an additional 70,000 KRW is provided monthly for after-school programs that run for approximately 3 hours daily beyond regular school hours. In 2024, additional support of 50,000 KRW per month will be provided for 5-year-old children, with plans to expand this to include 3- and 4-year-olds. Starting in 2024, with the full implementation of the integration policy, further reductions in the financial burden for early childhood education and care will be introduced. By 2025, additional support ranging from 70,000 to 110,000 KRW per month will be provided for 5-year-olds, depending on the type of institution, with plans to extend this to 3- and 4-year-olds in the future.

- ☐ Pre-primary education is **not** free.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

- What challenges were encountered in realizing early childhood care and education and pre-primary education?

☒ Limited access

☐ Poor learning outcomes

☒ Issues of equity and inclusion

☒ Low number of professionally trained educators

☐ Poor quality programmes

☐ Lack of support to families

☐ Other:

- Please elaborate. Brief quantitative information may be added.

■ **Limited access**

- The dual systems for early childhood education and childcare have posed challenges in balancing and improving the quality of both services. This has raised concerns about developmental gaps emerging and accumulating from the early years of life. In January 2023, the Ministry of Education, along with other relevant government ministries, announced a joint integration plan and the administration has been consolidated under the Ministry of Education. The 2024 Integration Action Plan was announced to standardize and raise the quality of educational and childcare services and to establish a model for integrated early childhood education and care institutions.

■ **Issues of equity and inclusion**

- The Integration Pilot Program (2023–present) has been implemented to address disparities in support between kindergartens and day-care centres, including meal costs, facility improvement fees, and support for the Nuri Curriculum. The Integration Action Plan (June 2024) also includes measures to establish a unified selection and support system, led by the metropolitan and provincial offices of education, to ensure equal opportunities for children with disabilities, providing them with an equal starting point in early childhood education.

■ **Low number of professionally trained educators**

- Efforts have been made to raise the minimum qualification standards for childcare teachers (from the current ISCED level 3 to level 5) and to shift from a credit-based certification system to a major-based academic system (Ministry of Health and Welfare, 2023). The 2024 Integration Action Plan aims to restructure the teacher training system into a department/major-based bachelor's degree program to enhance professional development of teachers in early childhood education and care.

2.2 Primary and secondary education

For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on States to provide “12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory.”

Primary education

- Please provide the age of enrolment and duration of primary education:

☒ Primary education begins at the age of 8 and lasts for 6 years.

- Is primary education compulsory and free of charge?

☒ Primary education is compulsory

☐ Primary education is **not** compulsory.

☒ Primary education is free of charge.

☐ Primary education is **not** free.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

- ☒ Primary education is compulsory
 - Article 8 of the Framework Act on Education and Article 12 of the Elementary and Secondary Education Act stipulate that primary education is compulsory.
- ☒ Primary education is free of charge.
 - Since 1959, primary education has been provided free of charge, predominantly through public elementary schools.

- What challenges were encountered in realizing primary education?

☐ Limited access

☐ Issues of equity and inclusion

☐ High dropout rates

☐ Poor quality programmes

☐ Other:

☐ Poor learning outcomes in:

Foundation literacy

Numeracy

Social and emotional learning

Others

☒ Disparity in learning outcomes

☐ Low number of professionally trained teachers

- Please elaborate. Brief quantitative information may be added.

- ☒ Disparity in learning outcomes
 - Results from the National Assessment of Educational Achievement (NAEA), conducted by the Korea Institute for Curriculum and Evaluation, indicate that students' basic academic ability have generally declined compared to pre-pandemic levels. Additionally, a comparison of students in rural areas and those in metropolitan cities revealed that urban students scored more than 10% higher across all subjects. To address these learning disparities and provide necessary support to students in need, the Act on Guarantee of Basic Academic Ability was enacted in September 2021. The Ministry of Education has since introduced measures such as the Comprehensive Plan for Basic Academic Achievement (October 2022) and the Plan for Enhancing Public Education

Competitiveness (June 2023). These plans designate grade 3 in elementary and grade 1 in middle school as key grades for focused support to prevent widening learning gaps (National Task 82-3).

Secondary education

In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training.

- Please provide the age of enrolment and duration of lower secondary education:

■ Lower secondary education begins at the age of 13 and lasts for 3 years.

- Please provide the age of enrolment and duration of upper secondary education:

■ Upper secondary education begins at the age of 16 and lasts for 3 years.

- Is lower and upper secondary education compulsory and free of charge?

■ Lower secondary education is compulsory.

☐ Lower secondary education is **not** compulsory.

■ Lower secondary education is free of charge.

☐ Lower secondary education is **not** free of charge.

☐ Upper secondary education is compulsory.

■ Upper secondary education is **not** compulsory.

■ Upper secondary education is free of charge

☐ Upper secondary education is **not** free of charge.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

■ Lower secondary education is compulsory.

– According to Article 8 of <Framework Act on Education>, lower secondary education is compulsory, while upper secondary education is not designated as compulsory.

■ Lower secondary education is free of charge.

– Article 10-2 of <Elementary and Secondary Education Act> stipulates that lower secondary education is free of charge. The costs covered under free education include entrance fees, tuition fees, school operation support fees, and textbook costs.

■ Upper secondary education is not compulsory.

– There are no relevant laws that designate upper secondary education as compulsory.

- Upper secondary education is free of charge
 - Article 10-2 of <Elementary and Secondary Education Act> stipulates that upper secondary education is free of charge. This includes entrance fees, tuition fees, school operation support fees, and textbook costs.

- Please indicate whether the legal minimum age for employment is aligned with the end of compulsory education:

For reference: The employment laws and those related to compulsory education are interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labour laws.

Yes ● No ○

- Please provide reference to the relevant laws and provisions and indicate how the provision is enforced:

- According to Article 64 of <Labour Standards Act>, individuals under the age of 15 (including those under 18 who are still enrolled in middle school under <Elementary and Secondary Education Act>) cannot be employed as workers. This provision ensures that the minimum age for employment is aligned with the end of compulsory education.

- What challenges were encountered in realizing secondary education?

- | | |
|---|--|
| ☐ Limited access | ☐ Poor learning outcomes |
| ☐ Issues of equity and inclusion | ☐ Low readiness of primary graduates |
| ☐ High dropout rates | ☐ Low number of professionally trained teachers |
| ☐ Poor quality programmes | |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

2.3 Higher education

For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3³⁹, and target 4.4⁴⁰. Article 4 of the Convention requires states to make “higher education equally accessible to all on the

³⁹ Which calls on states to “ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university”.

⁴⁰ Which recommends to “substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship”.

basis of individual capacity". Article 13 of the International Covenant on Economic, Social and Cultural Rights (1966) further adds that this should be pursued by "every appropriate means, and in particular by the progressive introduction of free education". Higher education includes technical and vocational education and training.

- Please indicate efforts made to ensure that higher education, including technical, vocation education and training, is equally accessible to all on the basis of individual capacity and/or is available free of charge (*several items may be ticked*):

- ☐ Higher education is free of charge
- ☒ Higher education is accessible on the basis of individual capacity (as assessed by reference to relevant qualifications and experience)
- ☒ Higher education is accessible through financial incentives and scholarships
- ☒ Higher education is accessible through positive or affirmative action measures
- ☒ Higher education is accessible through credit transfer system between states
- ☒ Higher education allows for multiple and flexible learning pathways (flexible entry and re-entry, recognition, validation, and accreditation of knowledge and skills acquired through non-formal and informal education).
- ☐ Other:

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, university supplies, transport, accommodation). Brief quantitative information may be added.

- Higher education is accessible on the basis of individual capacity (as assessed by reference to relevant qualifications and experience):
 - In Article 31 of <Enforcement Decree of the Higher Education Act>, it is stated that:
 - ① The heads of universities and colleges (excluding distance learning colleges) shall endeavor to ensure that all people are guaranteed an equal right to education according to their abilities...
 - ② In conducting admission screening under Article 34-1, the heads of universities or colleges shall prepare and implement various methods and standards to ensure that temperament, aptitude and abilities of students may be reflected.
- Higher education is accessible through financial incentives and scholarships:
 - According to Article 28 of <Framework Act on Education>, the state and local governments shall establish and provide scholarships, educational expense assistance, etc. for persons who have difficulty receiving education due to financial hardships. The state may subsidize all or part of school tuition fees or other required expenses incurred by persons who are in educational programs to be teachers and persons who major in or conduct research, inside or outside the country, in fields especially needed by the state.
 - The Ministry of Education is implementing <2024 National Scholarship Support Plan>, offering full tuition support for students from low-income families and providing additional financial support through the National Scholarship Type II fund, which has a budget allocation of 350 billion KRW.

- Higher education is accessible through positive or affirmative action measures:
 - Under <Enforcement Decree of the Act on the Development of Local Universities and Colleges and Regional Human Resources>, provisions are made to promote regional talent through preferential measures.
 - A framework for supporting the educational participation of students with disabilities has been established through multiple laws, including <Act on Special Education for Persons with Disabilities>, <Higher Education Act>, <Act on Welfare of Persons with Disabilities>, <Enforcement Decree of the Act on the Guarantee of Convenience Promotion of Persons with Disabilities, Senior Citizens, Pregnant Women and Nursing Mothers>. <Act on Special Education for Persons with Disabilities> mandates the establishment of Special Support Committees at universities to ensure support for disabled students, regardless of their number, and requires the establishment of Support Centres for Disabled Students in universities with more than 10 disabled students.
- Higher education is accessible through a credit transfer system between states:
 - Articles 21 and 23 of <Enforcement Decree of the Act on the Recognition of Credits> ensure the continuity of education and allow for the recognition of credits and degrees across institutions.
- Higher education allows for multiple and flexible learning pathways:
 - Korean higher education institutions recognize various forms of education (formal and non-formal) as higher education providers, as outlined in Article 9 of <Enforcement Decree of the Act on the Recognition of Credits>.

- What challenges were encountered in realizing higher education?

- | | |
|--|---|
| ☐ Limited access | ☐ Low number of professionally trained professors |
| ■ <u>Issues of equity and inclusion</u> | |
| ☐ Poor quality programmes | ☐ Insufficient mechanisms to ensure smooth transition from secondary to tertiary |
| ☐ Poor learning outcomes | |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

- Limited access
 - Although financial support for higher education for low-income households is provided annually through <2024 Customized National Scholarship Support Plan>, the associated costs of participating in higher education remain a burden. Particularly for students who attend institutions far from their homes, living expenses and commuting costs further exacerbate financial difficulties.
 - Socio-cultural barriers also hinder access to higher education, as reflected in the college enrolment rate of students from multicultural families. As of 2023, the enrolment rate for students from multicultural backgrounds was 40.5%, significantly lower than the national average of 71.5%. More effective policies are needed to address the educational exclusion and discrimination faced by multicultural students in earlier stages of education (elementary, middle, and high school).

■ Issues of equity and inclusion

- There are ongoing debates about the fairness of the Republic of Korea's college admissions system. The regular admissions process, which relies on a single exam score to determine university entrance, is criticized for failing to capture students' true potential, abilities, and diversity. Meanwhile, the comprehensive admissions process, which uses a holistic review of students' high school records, faces issues of subjectivity and a lack of trust in school records. Both admissions processes are often viewed as favouring students from higher socio-economic backgrounds, reinforcing social inequality and limiting upward mobility through education.

2.4 Adult education and alternative learning

For reference: Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.”

- Please indicate the measures taken to establish a system of continuing education and equitable access to learning and training opportunities (*several items may be ticked*):

☒ Provision of education for persons who have not received or completed the whole period of their primary education

☒ Provision of literacy programmes

☒ Provision of continuous learning (such as learning programmes to develop knowledge, skills, abilities, or competencies for personal and professional development)

☒ Provision of free of charge learning opportunities

☐ Provision of professional training including reskilling and upskilling programmes

☒ Recognition, validation and certification of non-formal and informal learning

☐ Provision of free of charge career guidance and counselling

☒ Lifelong learning entitlements including learning accounts, vouchers, etc.

☒ Other:

■ Adult Literacy Competence Survey:

- Please elaborate further on the measures taken:

■ Provision of education for persons who have not received or completed primary education:

- <Lifelong Education Act> Article 40 established an accreditation system for adult learners aged 18 and older. Adult learners can complete a literacy education program set up or designated by the metropolitan and provincial offices of education and be

granted primary or middle school academic recognition after a review of academic fulfilment. Article 76 of Enforcement Decree specifies the establishment of a Deliberative Committee of Literacy Education.

- Accreditation system for adult basic education has been established under Article 31 which includes designation of lifelong education institutions to provide a second learning opportunity to the underprivileged, such as adults, working youth, and out of school youths who have not been able to enter regular schools due to economic and other reasons.
- In 2016, an amendment to the Act provided grounds for establishing a National Center for Adult Literacy Education and Regional Literacy Education Centres, ensuring stable support for regional literacy education.

■ Provision of literacy programs:

- Article 39: The state and local governments are required to implement and financially support literacy education to enhance the basic literacy skills needed for life in society.
- Programs to expand learning opportunities for adult literacy learners include: "Support for Literacy Education Programs," the "Recognition of Adult Learners' Academic Achievement System," the "Adult Literacy Education Promotion Project" (which seeks to raise awareness about the importance of literacy), and the "Survey and Research for Adult Literacy Education" (which seeks to ensure systematic support for literacy education).
- The literacy curriculum was revised in 2018 to include activities aimed at enhancing basic life skills for adult literacy learners, providing elementary and middle school academic recognition.

■ Provision of continuous learning (to develop knowledge, skills, abilities, or competencies for personal and professional development):

- Since 2014, literacy education has expanded beyond basic reading, writing, and arithmetic to include basic literacy, life literacy, digital literacy, and a variety of other forms of literacy.
- Since 2006, literacy programs operated by night schools, literacy-specific institutions, and welfare centres have provided educational opportunities to around 720,000 illiterate individuals.
- Since 2011, education offices have established academic recognition programs, with 24,616 learners granted primary or middle school qualifications and 7,206 literacy education teachers trained as of June 2024.
- Specialized literacy education programs have been developed to meet learners' needs, including digital literacy (kiosk use, financial literacy), smartphone literacy, drama programs, and literacy choirs.

■ Provision of free of charge learning opportunities:

- The National Center for Adult Literacy Education has an annual budget of approximately 5 billion KRW (4.9 billion KRW in 2024) to support literacy education programs. Support is given to public institutions and non-profit organizations providing literacy education programs, and includes support for instructor fees, teaching materials, and more.
 - ① Since 2014, public institutions and companies have shared resources to create free teaching materials, broadcast educational content, and foster social cooperation in literacy education.
 - ② Since 2015, free textbooks have been distributed by the National Center for Adult Literacy Education to ensure minimum learning conditions, with approximately 250,000 copies distributed annually.

- Recognition, validation, and accreditation of non-formal and informal learning:
 - <Lifelong Education Act> Article 40 established an accreditation system for adult learners aged 18 and older. Adult learners can complete a literacy education program set up or designated by the metropolitan and provincial offices of education and be granted primary or middle school academic recognition after a review of academic fulfilment. Article 76 of Enforcement Decree specifies the establishment of a Deliberative Committee of Literacy Education.
 - The accreditation system for adult learners allows was established with the involvement of 17 metropolitan and provincial offices of education and 289 other institutes. During the period from 2011 to 2023, 24,616 learners received academic recognition for primary and secondary education.
- Lifelong learning entitlements including learning accounts, vouchers, etc.:
 - Since 2018, <Lifelong Education Voucher Program> has offered specified adults aged 19 or older, including low-income, marginalized individuals and disadvantaged groups within the region etc., an annual voucher worth up to 350,000 KRW to participate in lifelong education.
- Other: Adult Literacy Competence Survey:
 - A data-based literacy policy has been implemented, with literacy competence surveys conducted every three years since 2014 to identify illiterate adults and develop appropriate policies. From 2024, a digital literacy competence survey will also be conducted regularly.
 - Collaboration with private organizations continues to develop digital, financial, and life literacy content (e.g., health, road safety).

- What challenges were encountered in realizing adult learning and education?

■ Limited access

■ Issues of equity and inclusion

☐ Poor quality programmes

☐ Other:

■ Limited funding

☐ Poor learning outcomes

☐ Low number of professionally trained educators

- Please elaborate. Brief quantitative information may be added.

■ Limited access

- There are regional disparities in literacy rates, with rural areas showing a higher illiteracy rate compared to large cities and medium-sized towns.

※ 12.1% of those living in rural areas are illiterate at the level of 1st to 2nd grade of elementary school, compared to 3.6% in medium-sized towns, and 4.4% in Seoul and metropolitan areas (2020 Adult Literacy Survey).

■ Issues of equity and inclusion

- According to the 2023 4th Adult Literacy Survey, women show a higher illiteracy rate than men, particularly in those aged 60 and above, those with less than a middle school education, and households with lower income. Although adult literacy education programs have been operated continuously since 2006, there is still a need for further policy and institutional support for women, the elderly, and individuals with low education levels or economic difficulties.

- To provide more educational opportunities to adults who face difficulties resulting from their low literacy level, various initiatives are being implemented, such as expanding literacy program support for institutions, as well as projects such as the "Hangul Sunshine Bus Project for Mobile Digital Literacy Education" and the "YouTube Literacy Classroom".
- Limited funding
 - The 2023 4th Adult Literacy Survey estimates that about 3.77 million people (with Level 1 and Level 2 literacy levels) face difficulties in daily life due to low literacy. The annual budget for addressing adult illiteracy is approximately 5 billion KRW, benefiting about 70,000 adult learners each year. Most of the recipients are elderly, and basic literacy is a matter of quality of life, indicating the need for increased funding.
 - ① (Level 1) About 1.46 million people cannot perform basic reading, writing, and arithmetic necessary for daily life.
 - ② (Level 2) About 2.31 million people can perform basic reading, writing, and arithmetic but not at a level sufficient for use in daily life.

3. Quality education provision and learning environment

For reference: Articles/Paragraphs 2, 4(b) and 5(b) of the Convention/Recommendation provide for quality education. Quality education is fundamental to achieve all targets of SDG4. It is also particularly highlighted in SDG target 4.a that recommends states to “build and upgrade education facilities that are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all”.

3.1 General measures

- Please indicate whether the legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of public education institutions regarding:

■ State monitoring and inspections

■ Health and sanitation

■ Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools))

- ☐ Infrastructure
- ☐ Curriculum
- ☐ Student-teacher ratio
- ☐ School fees (if relevant)
- ☐ Other

- Please elaborate on each of the measures taken:

You may include information on policies, protocols or codes of conduct.

■ State monitoring and inspections

- <Act on the Safety and Maintenance of Educational Facilities, etc.> specifies provisions regarding monitoring and inspections of educational facilities, including Article 5 (Formulation of Master Plans for Educational Facilities), Article 6 (Formulation of Action Plans), Article 9 (Evaluation and Inspection of Management Status of Educational Facilities), Article 10 (Safety and Maintenance Standards for Educational Facilities), and Article 18 (Determination of Safety Ratings for Educational Facilities).

■ Health and sanitation

- <School Health Act> specifies provisions regarding health-related facilities and standards in schools, including Article 3 (Health Facilities), Article 4 (Environmental Sanitation and Food Sanitation in School), and Article 9 (Health Care for Students). Additionally, the <School Meals Act> stipulates provisions such as Article 6 (Meal Service Facilities and Equipment), Article 10 (Food Materials), Article 11 (Nutrition Management), Article 12 (Management of Sanitation and Safety), and Article 18 (Evaluation of Operation of School Meal Services).

■ Safety (Educating children in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools))

- <Act on the Prevention and Compensation for Accidents at School> specifies provisions to prevent school safety accidents, including Chapter 2 (Prevention of School Safety-Related Accidents), Article 5 (Responsibility for Prevention of Accidents at Schools), and Article 8 (Implementation of School Safety Education).

- What challenges were encountered in realizing quality education?

☐ Non-supportive or inadequate learning environments

☐ Low quality educational infrastructure and materials

☐ Violence in schools

☐ Inadequate parental support to education

■ Cost of education

☐ Long distances to schools

☐ Conflicts or crises

☐ Other:

- Please elaborate. Brief quantitative information may be added.

- Deterioration in the quality of public education due to high private education costs: Despite a decrease in the overall number of school students in the Republic of Korea, the number of students participating in private education has been increasing annually. The average monthly private education expenditure per participating student was found to be 740,000 KRW for high school students, 596,000 KRW for middle school students, and 462,000 KRW for elementary school students, representing increases of 6.1%, 3.7%, and 5.7%, respectively, compared to the previous year.

3.2 Education personnel

For reference: Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to “substantially increase the supply of qualified teachers”.

- Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels and regarding the training for the teaching profession (several items may be ticked):

- ☒ Teacher training is provided without discrimination.
- ☒ Teachers' average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels).
- ☒ Initial training and continuous professional development are provided.
- ☒ Minimum standards and qualifications required for the teaching profession.
- ☒ Measures taken to strengthen the social status and attractiveness of the teaching profession.
- ☐ Measures taken to promote diversity in the teaching workforce, including to redress gender imbalances at different levels of education.
- ☒ Establishment of performance monitoring systems.
- ☒ Measures taken to increase women in leadership positions in education.
- ☐ Other:

- Please elaborate on each of the measures taken:

- Teacher training is provided without discrimination
 - <Regulations on Training of Teachers>, specify that teacher training is provided without discrimination.
 - Teachers are required to complete statutory training each year, including human rights, gender equality, prevention and eradication of sexual harassment and sexual violence, disability awareness improvement, and multicultural education.
- Teachers' average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications
 - According to the OECD's Education at a Glance (EAG), the starting statutory salary for public elementary and secondary school teachers in the Republic of Korea in 2021 was US\$33,615 (PPP) for elementary teachers and \$33,675 (PPP) for secondary teachers, slightly below the OECD average. However, the statutory salary for teachers with 15 years of experience was \$59,346 (PPP) for elementary teachers and \$59,406 (PPP) for secondary teachers, higher than the OECD average (OECD, 2023).
- Initial training and continuous professional development are provided
 - Article 38 of <Educational Officials Act> mandates that public educational officials shall continuously make efforts to research and improve themselves to perform their duties.
 - Teacher training can be categorized into institution-based and individual-based training. Institution-based training is further divided into training provided by training institutions (qualification training, in-service training, and special training) and school-based training. Qualification training is provided to acquire teacher qualifications (Article 6 (1)) of the Regulations on Training of Teachers), while in-service training is provided for teachers to enhance their professional skills and includes mandatory training on changes in educational policy and legal requirements (Article 6 (2)), and special training is provided domestically or internationally by the national or local government (Article 40 of <Educational Officials Act>).
 - School-based training includes professional learning communities, consulting, and self-directed supervision, with the goal of continuous teacher training at the school level.

- Minimum standards and qualifications required for the teaching profession exist
 - <Elementary and Secondary Education Act> Article 21 and <Early Childhood Education Act> Article 22 specify the qualification standards for teachers.
 - Detailed criteria, such as subject-specific and education-related credits, are established by the Minister of Education under the Detailed Standards for Acquiring Qualifications to Teach in Kindergarten, Elementary, Middle, and Special Schools.
- Measures to enhance the social status and attractiveness of the teaching profession have been implemented
 - <Special Research Year for Teachers Program> has been introduced as a measure to enhance teachers' professional development and address teacher burnout. Under <Directive on Implementing Teacher Competency Evaluations>, superintendents of the offices of education and school principals must analyse the results of evaluations and offer outstanding teachers special research leave.
- A performance monitoring system is implemented
 - The Republic of Korea has been implementing the Teacher Competency Development Evaluation since 2010, based on Articles 18 to 23 of the Regulations on Training of Teachers, which establish the principles, criteria, and utilization of evaluations for teacher development.
- Measures to increase the participation of women in leadership positions in education have been introduced
 - The Female Professors Quota System for National and Public Universities: Article 11-5 (Formulation of Appointment Plans Based on Equal Opportunities for Both Genders) of <Educational Officials Act> stipulates that the State shall endeavor to ensure that either gender does not exceed three fourths of faculty members in the entire universities established and operated by the State. In such case, the annual target gender ratio of faculty members shall be prescribed by Presidential Decree. <Decree on the Appointment of Public Education Officials> has set annual goals for the proportion of female professors in national and public universities, targeting 25% by 2030.

- What challenges were encountered in the education personnel?

- | | |
|--|---|
| ☐ Shortages of teaching staff | ☐ Low quality educational infrastructure and materials |
| ☐ Lack of qualified, trained and motivated teaching staff | ☒ <u>High student – teacher ratio</u> |
| ☐ Lack of training centres | |
| ☒ <u>Other:</u> | |

- | |
|--|
| <ul style="list-style-type: none"> ■ Educational activity infringement issues |
|--|

- Please elaborate. Brief quantitative information may be added.

- | |
|---|
| <ul style="list-style-type: none"> ■ High student-teacher ratio <ul style="list-style-type: none"> – As of 2021, the number of students per teacher in the Republic of Korea was 16.1 in elementary schools (OECD average: 14.6), 13.3 in middle schools (OECD average: 13.2), and 10.7 in high schools (OECD average: 13.3). While the student-teacher ratio in elementary schools is higher than the OECD average, it is approximately the same as the |
|---|

OECD average in middle and lower in high schools (0.1 higher for middle schools and 2.6 lower for high schools). Due to a projected decline in the school-age population as a result of low birth rates, the student-teacher ratio in the Republic of Korea is expected to continue decreasing, with the elementary school ratio projected to be 14.8 by 2024. This decrease is expected to improve the quality of instruction and reduce teachers' workloads.

■ Other: Educational activity infringement issues

- Recently, there have been challenges related to infringements on teachers' freedom to conduct educational activities due to parent complaints, among other issues. These challenges increase teachers' stress levels and exacerbate teacher burnout, lowering job satisfaction. Ultimately, these issues negatively impact students' right to learn and the creation of a safe school environment. In response, comprehensive measures to protect educational activities have been implemented, with school complaints being handled at the institutional level. In particular, complaints related to infringements on educational activities are addressed by the Teacher Protection Committee.

3.3 Respect for human rights and fundamental freedoms

For reference: Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.⁴¹ Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the future consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms // 2023 Recommendation on [...] will be used specifically for monitoring SDG4 indicator 4.7.1.

- Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items may be ticked):

■ Curriculum includes human rights education.

■ Educational and/or extracurricular activities are organized on human rights education.

■ Other:

- Please elaborate on each of the measures taken:

■ Curriculum includes human rights education

- Based on the Research on Systematizing Human Rights Education Content for Elementary and Secondary Schools and Applying the Revised Curriculum conducted by the National Human Rights Commission of Korea in 2020, reviews and recommendations were made to expand human rights education in the National Framework of the 2022 Revised Curriculum.

⁴¹

Which calls on states to “ensure that all learners acquire the knowledge and skills needed to promote sustainable development, including, among others, through education for sustainable development and sustainable lifestyles, human rights, gender equality, promotion of a culture of peace and non-violence, global citizenship and appreciation of cultural diversity and of culture’s contribution to sustainable development”.

- Following the 2015 Revised National Curriculum, the 2022 Revision also includes human rights education as a cross-curricular learning theme.
- Educational and/or extracurricular activities are organized on human rights education
 - As the 2022 Revised National Curriculum strengthens school autonomy in curriculum management, the National Human Rights Commission of Korea has encouraged the development of textbooks focused on human rights education, allowing schools to implement human rights education during creative experiential activities. The National Human Rights Commission has also developed a variety of educational resources for human rights education, including methods of implementing human rights education through play. The Commission also supports capacity-building for teachers and human rights educators in effectively utilizing these materials. Moreover, educational resources aimed at recognizing climate change as a human rights issue, especially since it disproportionately affects social minorities, have been developed and distributed to schools to raise awareness of human rights implications.
- Other: Institutional foundations have been established to enhance teachers' awareness of human rights and develop their capacities to conduct for human rights education, and research is being conducted on teacher training. The Study on the Current Status of Education on Human Rights and Improvements in Teacher Education Institutions conducted by the National Human Rights Commission of Korea in 2023 presents content frameworks for human rights education for prospective teachers. It particularly highlights topics such as the prevention of discrimination in educational settings, the low understanding of the UN Convention on the Rights of the Child among prospective teachers, the limited awareness of student rights, and the societal conflict between teacher authority and student rights. The research emphasizes the importance of protecting minority rights, understanding children's and youth rights, and balancing teacher rights with educational responsibilities.

3.4 Non-state actors in education

For reference: Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for non-state education provision⁴².

- Please indicate the measures taken to ensure the provision of quality non-state education (several items may be ticked):

■ Legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation⁴³ explicitly apply to non-state educational institutions. Please specify:

■ <Private School Act>

- This law was enacted to promote the sound development of private schools by ensuring their autonomy and public interest. It clarifies the authority and responsibilities of private school founders and heads, preventing founders from unjustly interfering with school administration. The aim is to enhance the public character and sound development of private education institutions.

■ <Act on Alternative Educational Institutions>

- This law provides a legal framework for the establishment and operation of alternative education institutions, to protect students and guarantee the right to equal education for all

⁴² Private, faith-based, NGOs, community actors.

⁴³ See: Article/Paragraph 1(1).

citizens according to their abilities and aptitudes. It aims to ensure the safety of students and the quality of education in allowing the registration of non-accredited alternative education facilities as alternative education institutions.

- Policies aim to guarantee that the development of non-state education does not generate discrimination and that non-state actors offer a relevant alternative (without supplanting public education). [Please specify:](#)

- Legal provisions provide for the rights of the parents /legal guardians for providing religious and moral education for their children. [Please specify:](#)

- Legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of non-state educational institutions. [Please specify what is covered:](#)

■ Registration

■ State monitoring and inspections

■ Qualifications of teachers

■ Health and sanitation

■ Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools))

☐ Infrastructure

☐ Curriculum

☐ Student-teacher ratio

■ School fees

■ School closures

☐ Other

[- Please elaborate:](#)

■ Registration

- Article 1 of <Act on Alternative Educational Institutions> aims to help guarantee the right to education. Article 3 sets forth provisions for the registration and operation of alternative education institutions. Article 5 requires the registration of alternative education institutions with the superintendent of the office of education and mandates necessary facilities, such as classrooms and sports fields.

■ State Monitoring and Inspections

- Under the Article 12 of the Act, the Minister of Education and superintendent of the office of education must conduct situational analysis of alternative education institutions every five years to monitor their operations.

■ **Qualifications of Teachers**

- Article 17 of the Act specifies that teachers in alternative education institutions must hold at least an associate degree in the relevant field or have professional experience, as outlined by the relevant Presidential Decree.

■ **Safety**

- Articles 6 and 17 of the prohibits individuals convicted of sexual offenses against minors from establishing or teaching in alternative education institutions (). Alternative education institutions can also join the Youth Safety Compensation Fund to ensure that students and staff are compensated for accidents during educational activities, as stated under the Article 29 of <School Safety Accident Prevention and Compensation Act>.

■ **School Fees**

- Article 15 of the Act permits alternative education institutions to charge tuition, admission fees, and operational support fees, which must be approved by the institution's management committee. Based on the Article 16, institutions must publicly disclose their budget and settlement of accounts.

■ **School Closures**

- Article 8 of the Act requires institutions to report any closure to superintendent of the office of education.
- <Elementary and Secondary Education Act (Article 65, Closure of Schools)> specifies that:
 - ① Where it is impossible to manage normal school affairs under the following circumstances, the competent authority may order the relevant school to close:
 1. Where the head, founder, or manager of a school violates the Act or an order issued under the Act intentionally or by gross negligence;
 2. Where the head, founder, or manager of a school repeatedly violates the Act or orders issued by the competent authority under other education-related statutes or regulations;
 3. Where a school fails to hold lessons for at least three months except for a period of suspension and temporary closure of the school.
 - ② If any person uses the title of a school or invites students and operates the facilities in the de facto form of a school without obtaining authorization to establish a school as referred to in Article 4 (2) or authorization to establish a branch school as referred to in Article 50, the competent authority may order such person to close the facilities which he or she has established and operates.

- What challenges were encountered in non-state education provision?

☐ Low quality educational infrastructure and materials

☐ Low number of professionally trained teachers

☐ High student – teacher ratio

■ Other:

■ Issues in terms of equity and inclusion

☐ Weak government regulatory and monitoring capacity

■ Weak government regulatory and monitoring capacity

- Please elaborate. Brief quantitative information may be added.

- Issues in terms of equity and inclusion
 - The increasing financial burden on households due to private education expenses and significant regional disparities have raised concerns about equity.
- Other: Weak government regulatory and monitoring capacity
 - There are issues in monitoring the status and ensuring the safety of students attending unregistered alternative education facilities. Additional measures are needed to ensure that education authorities can play a role in ensuring the safety and quality of education in unregistered institutions.

3.5 Digital education

Digital education is both an opportunity for enhancing access but also can lead to challenges in terms of quality education and inclusion⁴⁴.

- Please indicate the measures taken to ensure the provision of quality digital education (several items may be ticked):

■ Digital technology use in education is provided for in the legal framework.

Please indicate the relevant text and provisions:

- Digital technology use in education is provided for in the legal framework.
 - Article 23 of the <Framework Act on Education (Informatization of Education)>, the state and local governments are required to establish and implement policies necessary for informatization of education, such as providing support for education on informatization and education through information communications media and promoting the educational information industry. The law also mandates the establishment and implementation of necessary measures to include education regarding legal and ethical standards necessary to use information communications media in order to prevent any damage to the reputations, lives, bodies, and property of others. Article 23-2 (Computerization of Administration of Schools and Educational Organizations) specifies that the state and local governments shall devise policies for electronic processing of administration of schools and educational organizations.
 - <Framework Act on the Promotion of Digital-Based Distance Education> specifies the principles for distance education in Article 3 (Basic Principles), stating that the head of an education institution shall ensure that the students are not discriminated against on the grounds of physical or mental disability, living standards, nationality, or the like. Additionally, Article 4 (Responsibilities of the State and Local Governments) requires the state and local governments to provide support necessary to ensure that students from vulnerable groups in distance education prescribed by Presidential Decree, such as students with disabilities provided in <Act on Special Education for Persons with Disabilities>, and children of recipients as provided in <National Basic Living Security Act>, can participate in distance education.
- Core legislation, policies, strategies, or plans for the management, privacy, security, storage, transfer, use, and sharing of education data internally and externally to ensure the right to privacy of learners and education stakeholders.

- Article 23-3 of the <Framework Act on Education (Principles of Student Information Protection)> states that student information shall be collected, processed, used or managed for educational purpose, and sets principles for providing minors' personal information to third parties. Other relevant regulations include the <Personal Information Protection Act>, <Ministry of Education's Personal Information Protection Guidelines>, and <Ministry of Education's Security Regulations>.
- The regulatory framework establishes minimum education standards for digital education to which all actors in education must comply.
 - The Ministry of Education's regulatory framework guarantees access to curriculum-aligned digital content available on free public multi-modal platforms. High-quality content is provided for core subjects in the national official language, designed with inclusive features to assist learners with disabilities.
 - Additionally, legal measures have been taken to remove barriers for vulnerable groups accessing digital content. <Framework Act on Intelligent Informatization> Article (Guaranteeing Access to and Use of Information by Persons with Disabilities and Senior Citizens) mandates that state agencies and stakeholders, such as intelligent information service providers, information and communication or intelligent information technology manufacturers, telecommunications operators, and relevant government agencies, shall endeavor to enhance access to intelligence information services by persons with disabilities, senior citizens, etc., and user convenience when providing such services.
- Future-ready skills (including digital skills, data and AI competencies, critical thinking, etc.) are integrated into the formal curriculum at all levels of education.
 - According to the 2022 Revised National Curriculum, all students must acquire foundational digital literacy along with language and numeracy skills to ensure continuous learning in both formal education and lifelong learning. The curriculum mandates that lessons should be designed to foster these foundational skills across all subjects. Schools are also required to create learning spaces and environments that facilitate digital-based learning and to establish a digital learning environment that supports effective learning through various intelligent information technologies and tools.
- Measures address the digital divide, including ensuring access to reliable electricity, meaningful internet connectivity at school and at home, devices suitable for learning and teaching, safe and sustainable software, secure platforms, and integrated education data systems.
 - <Elementary and Secondary Education Act> Article 60-4 and <Enforcement Decree> Article 104-2 of the, legal grounds are provided for supporting access to education informatization services, including subsidies for internet usage and digital devices for vulnerable students.

■ Core legislations, policies, strategies or plans for the management, privacy, security, storage, transfer, use, and sharing of education data internally and externally to ensure the right to privacy of learners and education stakeholders (e.g., informed consent, transparent usage policies, etc.)

■ Regulatory framework establishes minimum education standards for digital education to which all actors in education must comply.

□ Measures to remove barriers to accessing digital content⁴⁵, including ensuring access to curriculum-aligned digital content available on free, public, multi-modal national platforms; high-quality content is available in core subjects, official national language(s), and designed with inclusive features to assist learners with disabilities.

■ Digital skills incorporated into pre- and in-service teacher and leadership training curricula to create a culture of digital innovation and growth anchored in equity and inclusion that enables ongoing professional development for existing and emerging staff.

■ Future-ready skills (including digital skills, data and AI competencies, critical thinking, etc.) integrated into formal curriculum at all levels of education

■ Measures address the digital divide, including ensuring access to reliable electricity, meaningful internet connectivity at school and at home, devices suitable for learning and teaching, safe and sustainable software and secure platforms, and integrated education data systems.

■ A well-established, sustainable, and cost-effective budget secured from a range of funding sources and intersectoral cooperation, supported by impact focused reporting linked to regional strategic goals.

- Please elaborate on each of the measures taken:

- Republic of Korea's educational informatization began in 1996. In terms of legislation, Article 23 and Article 23-2 of the <Framework Act on Education> were enacted in 1997, followed by the establishment of detailed provisions. In addition, the <Framework on Intelligent Informatization> serves as a general law that regulates the digital divide and prohibits discrimination.
- Digital education in schools, the computerization of administration of schools and educational organizations, the informatization of libraries, and protection of students' personal information have been implemented based on Articles 23, 23-2, and 23-3 of the <Framework Act on Education>. Provisions regarding the informatization of digital education and administrative tasks across various educational levels, are also stipulated in specific articles in a variety of laws such as <Early Childhood Education Act>, <Elementary and Secondary Education Act>, <Higher Education Act>, and <Lifelong Education Act>.
- With the introduction of distance education during the COVID-19 pandemic, <Framework Act on the Promotion of Digital-Based Distance Education> was enacted in 2020 and is currently being implemented.
- In school education, digital education has been conducted since 2000, with ICT literacy education and ICT utilization integrated across all subjects and in school-designed autonomous hours. The 2015 revised curriculum explicitly states the strengthening of digital literacy and education. In elementary schools, students receive at least 34 hours of digital literacy education, and in middle schools, at least 68 hours of digital literacy and AI utilization education are required. The introduction of an information subject in the 2015 revised curriculum is also significant. This policy direction has been continued and strengthened in the 2022 revised curriculum, including the enhancement of digital literacy education.

⁴⁵ Lack of internet connection, basic infrastructure or devices.

- Discrimination based on economic or physical reasons is prohibited in digital education. Article 104-2 of the <Enforcement Decree of the Elementary and Secondary Education Act> provides for education costs to be subsidized in order to ensure equal educational opportunities and prevent digital divides caused by financial inequalities. Projects are also being implemented to subsidize internet usage fees and PC devices for home-based learning using information and communication media. Discrimination based on physical condition (such as in the case of students with disabilities) is also prohibited under Article 4 (Prohibition of Discrimination) of the <Act on Special Education for Persons with Disabilities>.
- Under its policy to nurture 1 million digital talents, the current government established a <Digital-Based Educational Innovation Plan> in 2023 to accelerate digital education. This policy includes detailed regulations on the development and distribution of AI digital textbooks, tailored learning for slow and fast learners, consideration for students with disabilities, and training programs for teachers to strengthen their digital competencies (such as digital education-leading teachers).

- What challenges were encountered in digital education provision (check all that apply)?

- | | |
|---|--|
| ☐ Lack of quality, curriculum-aligned digital teaching and learning content that supports flexible learning and teaching pathways
☒ <u>Lack of equity and inclusion in digital learning solutions</u>
☐ inadequate safety measures and IT support to respond to issues of child online safety or reduce cyber security risks
☒ <u>Other:</u> | ☐ Limited access to internet and/or electricity
☐ Limited access to hardware (devices, chargers, etc.)
☐ Difficulty in regulating the use of digital education solutions
☐ Difficulty in sustainably financing digital education solutions at national scale
☐ Lack of digital skills development for meaningful use of digital technology in teaching practice
☐ Disjointed or fragmented solutions that are not centrally systematized or regulated |
|---|--|

- Please elaborate. Brief quantitative information may be added.

- Lack of equity and inclusion in digital learning solutions
 - Closing gaps in digital education has been designated as a key task under National Agenda 81-5. As Republic of Korea intensifies its digital education, it is essential to establish principles and specific measures to address significant digital education divides, ensuring that marginalized groups such as people with disabilities, multicultural students, and the elderly are not left behind. In July 2024, the Ministry of Education introduced digital education standards and announced the strategic direction for digital education, which includes AI digital textbooks to be introduced next year. The standards place emphasis on narrowing digital divides and promote citizenship education that encourages healthy communication with others when using digital technology. (Source: https://www.news1.com/view/NISX20240703_0002797033).

■ Other

- There is a need to establish long-term plans to secure funding for the operational and maintenance costs of physical infrastructure, network operation, and the provision of student devices required for digital education.
- For students under the age of 14, an exception needs to be made to the requirement to obtain parental consent for the collection of personal data (allowing the school principal to handle this if necessary).

4 Strengthening governance systems

For reference: The Education 2030 Framework for Action states "to ensure quality education and conditions for effective education outcomes, governments should strengthen education systems by instituting and improving appropriate, effective and inclusive governance and accountability mechanisms; quality assurance; management information systems; transparent and effective financing procedures and mechanisms; and institutional management arrangements, as well as ensure that robust, timely and accessible data are available" (para. 18).

- Please indicate the measures taken in terms of governance (several items may be ticked):

■ Monitoring mechanisms to assess compliance with the right to education obligations, including through management information systems.

■ Monitoring results are made public. Please provide the link:

■ The Ministry of Education's annual self-evaluation reports are available via the Government Performance Evaluation Portal.

https://www.evaluation.go.kr/web/board/boardList.do?menu_id=63

■ The Ministry of Education publishes five-year performance management reports on its website after <Implementation Plans for Performance Management> are established and the relevant monitoring results are collected.

<https://www.moe.go.kr/boardCnts/viewRenew.do?boardID=333&boardSeq=91351&lev=0&searchType=null&statusYN=W&page=1&s=moe&m=020501&opType=N>

■ Monitoring processes are participatory, inclusive and regular.

■ Sector-wide and multisector approach is adopted to education governance.

■ Financial resources are effectively allocated to prioritise the provision of free, quality, public education and are adequately budgeted for in government plans.

■ The decision-making process for the allocation of resources to education is transparent.

■ Ensuring crisis-sensitive and disaster risk-informed planning and programming, including the provision of quality education in emergencies.

■ There is a certain degree of decentralization in favour of local public authorities and autonomy for schools to ensure context relevance of their teaching.

- Please elaborate on each of the measures taken:

- The Education 2030 Framework for Action presents a comprehensive plan to ensure quality education and maximize educational outcomes. It aims to strengthen education systems through appropriate, effective, and inclusive governance and accountability mechanisms, quality assurance, efficient financial management, and data utilization, ensuring that all students receive quality education. In Republic of Korea, the following measures have been taken to implement this framework:
 - Establishment of monitoring mechanisms to assess compliance with the right to education, including through management information systems
 - The Government Performance Evaluation Portal (<https://www.evaluation.go.kr>) has been established to evaluate education policies conducted by central administrative agencies, local governments, and their affiliated public institutions.
 - Performance Management System: Pursuant to the Article 2 (6) of <Framework Act on Public Service Evaluation>, an integrated performance management system has been in operation since 2006. The Ministry of Education evaluates its policies annually based on the <Strategic Plans for Performance Management (5-year basis)>, <Performance Management Implementation Plan and the Self-Evaluation Plan (annual basis)>, reflecting the results in policies, organizational structure, budgets, personnel, and wages.
 - Monitoring processes are participatory, inclusive, and conducted regularly
 - Performance monitoring is conducted through the Ministry of Education's self-evaluation committee, composed entirely of external members, and performed annually. A variety of experts including professors, teachers, and researchers, are included in the evaluation.
 - Sector-wide and multi-sector approaches are adopted in education governance
 - Sector-wide approach: Efforts to implement this approach involve establishing governance tailored to the specific needs of each education levels, ensuring specialized strategies and cooperation methods for early childhood, elementary, secondary, higher, and lifelong education to enhance learning experiences of students and quality of education.
 - Multi-sector approach: Efforts are made to establish an educational collaboration governance that emphasizes the connection between schools and the local community to improve the quality of education and provide students with diverse learning opportunities. Projects including Education Innovation Zones and Village Education Communities emphasizes cooperation between metropolitan and provincial offices of education, local governments, schools, private companies, and civil society.
 - Financial resources are effectively allocated to prioritize the provision of free, quality, public education, and are adequately budgeted in government plans
 - Effective allocation of financial resources: Local education finance is separated from the local government's general accounting under a special account for education expenses managed by metropolitan and provincial offices of education.
 - School budget autonomy: The school accounting system in <Elementary and Secondary Education Act> aims to support the various activities of schools from a financial perspective to achieve educational objectives by allowing schools to integrate various financial resources earmarked for specific purposes before, such as school operational support funds and school development funds, into a single account and allocate a total budget before the start of the fiscal year. Through teacher participation and deliberation by the School Management Committee, schools autonomously plan and execute the expenditure budget based on prioritized needs within the unified revenue framework.
 - Securing sufficient budget: As of 2020, Republic of Korea's public education expenditure per student was US\$13,278 (PPP) for primary education and \$17,038 (PPP) for secondary

education, which is higher than the OECD average (primary education: \$10,658 (PPP), secondary education: \$11,942 (PPP)). The ratio of government funds to public education expenditures at the primary and secondary education level to GDP is 3.3%, which is also the average OECD average, signalling that efforts are being made to improve the quality of education and ensure equal educational opportunities (OECD, 2023).

- The decision-making process for allocating resources to education is transparent
 - Decision-making process: Local education finance is organized as a budget with local education finance grants supported by the state and local governments, and is then determined through government and local assembly procedures, with decisions made by local assemblies. On the other hand, school accounting is organized as a revenue and expenditure budget with the transfer funds of metropolitan and provincial offices of education and parental income as the main financial sources, and the budget is executed after deliberation and advice by the School Management Committee. Currently, school accounting is operated based on the education rules for school accounting put in place by each metropolitan and provincial offices of education, and unlike the accounting for the education expenses special account, the accounting year for school accounting starts on March 1st of each year when school starts and ends at the end of February of the following year. (Local Education Finance Information Portal: <https://eduinfo.go.kr>).
 - Public disclosure of financial information: The Ministry of Education and metropolitan and provincial offices of education are required to publish financial operations, information and outcomes to the public through objective procedures. Article 60 of the <Local Finance Act> specifies the target, procedure and timing for the announcement. The public announcement is prepared in accordance with guidelines provided by the Ministry of Education, considering factors such as clarity, accessibility, and usefulness from the user's perspective.
- Ensuring crisis-sensitive and disaster risk-informed planning and programming, including the provision of quality education in emergencies
 - Crisis-sensitive education planning includes offering distance and in-person education in emergencies.
 - The National Safety Education Platform (<https://kasem.safekorea.go.kr>) provides safety education materials, resources, and information on safety culture activities.
 - The Ministry of Education and the School Safety and Insurance Federation provide a disaster response manual and safety education materials through the School Safe Information Centre (<https://www.schoolsafe24.or.kr/>).
- There is a certain degree of decentralization in favour of local public authorities and autonomy for schools to ensure the context relevance of their teaching
 - Strengthening local education autonomy: <Local Education Autonomy Act> provides a legal basis for local educational autonomy and expanding the participation of local residents. The Act aims to provide education that reflects the actual needs of the communities and students by granting autonomy and responsibility to local governments and schools and establishes a foundation for local governments and schools to cooperate to provide more effective and efficient education.
 - Expanding school autonomy: School Management Committee, composed of teachers, parents, and student representatives, participate in decision-making regarding the curriculum and school operations, promoting the quality of education through community involvement.

- What challenges were encountered in terms of governance?

- ☐ Budgetary constraints
- ☒ Lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels
- ☐ Poor dialogue with teachers' trade unions
- ☒ Other:
- ☒ Creation of educational disparities, lack of policy consistency
- ☒ Absence of supportive/ inconsistent/obsolete legal and policy environment
- ☐ Lack or weakness of monitoring systems – including the lack of reliable data

- Please elaborate. Brief quantitative information may be added.

- ☒ Lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels: Governance challenges in education
 - Conflicts among various stakeholders: Teachers, parents, students, local governments, and the central government are involved as stakeholders, and delays in decision-making and difficulties in reaching consensus can arise during the process of gathering and managing opinions from these diverse groups.
 - Lack of a participatory culture: Low engagement from students, parents, and local communities, and a lack of trust among stakeholders can hinder cooperation.
- ☒ Absence of supportive/inconsistent/obsolete legal and policy environment
 - Imbalances in resource allocation across regions and schools may contribute to educational disparities.
- ☒ Other: Creation of educational disparities, lack of policy consistency
 - Frequent changes in government or policies can lead to difficulties in maintaining consistent education governance.

III. Methods used to draw the attention of the various authorities in the country to the instruments

For reference: UNESCO governing bodies have underlined the need for awareness raising. Given the importance of normative action at the national level, wide dissemination of the Convention must be ensured, with the support of National Commissions for UNESCO.

- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (Several items may be ticked)

- ☒ Translation of the Convention/Recommendation into the national and possibly local languages
- ☒ Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education including through appropriate materials and resources
- ☒ Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments
- ☐ Other:

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